

Boer Politics

Yves Guyot

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BOER POLITICS

BY YVES GUYOT

Translated from the French

**LONDON:
JOHN MURRAY, ALBEMARLE STREET
1900**

INTRODUCTION.

A word in explanation of this English edition is perhaps not unnecessary.

It will be remembered that the arguments in the following pages appeared originally in the columns of *Le Siècle*, and from the correspondence between M. Yves Guyot and Dr. Kuyper and M. Brunetière (Appendix B), the reader will understand how the publication of *Le Siècle* articles in pamphlet form arose.

In the month of May when M. Yves Guyot's *La Politique Boer* made its appearance, the supply of literature by more or less competent judges on South African affairs was already so formidable in this country, that an English publication of his pamphlet was apparently not wanted. Moreover, as my master's arguments were written for readers on the continent and not for those of Great Britain, such a publication was not thought of at the time.

Of the first editions of *La Politique Boer* placed before the reading public in various countries, a few thousand copies were sent to London. The demand, however, exceeded the supply to such a large extent, and so many letters were received at this office from British readers (unfamiliar with the French language) asking for a translation, that an English dress of *La Politique Boer* was decided upon.

As the translation was proceeding various incidents of importance in connection with the South African crisis took place. These were commented upon by M. Yves Guyot in *Le Siècle* and added to the existing pamphlet; the English edition is consequently more up-to-date than the original.

Our thanks for valuable assistance given in the translation are largely due to Mrs. Ellen Waugh and Mr. Charles Baxter.

M. Yves Guyot has renounced his author's rights, and the profits to *Le Siècle*, resulting from this publication, will be handed in two equal shares to the societies here and in South Africa which represent the interests of the

widows and orphans of English and Boer combatants who have given their lives for their countries.

JULES HEDEMAN.

THE LONDON OFFICE OF *Le Siècle*
32, CHARING CROSS, S.W.

25th October, 1900.

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PREFACE.

THE QUESTION.

I have endeavoured in the following pages to separate the Transvaal question from the many side issues by which it is obscured.

In the "Affaire Dreyfus" I constantly recurred to the main point—Dreyfus was condemned upon the "bordereau"; Dreyfus was not the author of the "bordereau," therefore he was not responsible for the documents named in the "bordereau."

In this case, in like manner, there is but one question:—Has or has not the government of the South African Republic acted up to the convention of 1884, and is the English government bound to regard that convention as of no effect with regard to the Uitlanders who have established themselves in the Transvaal on the faith that England would insist upon its being respected?

Pro-Boer Argument.

Pro-Boers refuse to recognise this point, as did M. Cavaignac when, in his speech of July 7th, 1898, he abandoned the "bordereau" to substitute for it the Henry forgery.

They keep talking of the Great Trek of 1836; of England's greed; of the gold mines; and, above all, of the Jameson raid. The Jameson raid is their pet grievance; it takes the place of all argument. The Uitlanders may well say that "Jameson has been Krüger's best friend."

Notwithstanding, the Jameson raid is the best proof of the powerlessness of England to protect the interests of her subjects against the pretensions of the Pretoria Government.

In 1894, Lord Ripon had already made ineffectual representations to that Government concerning the contempt with which it was treating the Convention of 1884.

The Uitlanders had approached the Volksraad in a petition signed by 14,800 persons. The petitioners did not ask that the Republic should be placed under the control of the British Government; on the contrary, they postulated the maintenance of its independence; all that they asked was for "equitable administration and fair representation." This petition was received with angry contempt. "Protest, protest as much as you like," said Mr. Krüger, "I have arms, and you have none."

It is contended that if President Krüger did provide himself to a formidable extent with munitions of war, it was not until after the Jameson Raid.

Here the connexion between cause and effect is not very clear; Jameson once beaten there was no further cause to arm against him. But from the Uitlanders' petition, to which allusion has been made, it is evident that armaments had begun before. Among the alleged grievances we find the following:—

"A policy of force is openly declared against us; £250,000 have been expended on the construction of forts; upon one alone, designed to terrorise the inhabitants of Johannesburg, £100,000 has been spent. Large orders have been given to Krupp for big guns and maxims; and it is said that German Officers are coming to drill the burghers."

The Uitlanders of Johannesburg treated with contumely, adopted the theories made use of by the Boers in their Petition of Rights of February 17th, 1881, by which they justified their insurrection against British rule, of December, 1880.

"Then the cause was unexpectedly helped on by the courageous resistance of O. Bezuidenhout against the seizure of his household effects for non-payment of taxes. Here was a breach of the law easy to lay hold of; here was a crime indeed! It was illegal, undoubtedly, but illegal in the same sense as was the refusal of Hampden to pay the four or five shillings "ship

money"; the taking of den Briel by the Watergeuzen (Waterbeggars) in 1572; as was the throwing overboard of a cargo of tea in Boston; as was the plot in Cape Colony against the importation of convicts. All these acts were illegal, but of such are the illegalities in which a people takes refuge, when a Government fails in its duty to a law higher than that of man."

In virtue of the principles invoked by the Boers, the Johannesburg Uitlanders entered into a conspiracy; Jameson was to come to their aid after they had risen. Messrs. Leonard and Phillips put themselves in communication with Cecil Rhodes. He listened to their manifesto, and the instant they came to the mention of free trade in South Africa, he said: "That will do for me." The supposition that he desired to annex the Transvaal is absurd.^[1] He has admitted that he gave his personal co-operation to Jameson without having first consulted his colleagues of the Chartered Company. Jameson was to have gone to the assistance of the Uitlanders; not to forestall the insurrection, which was fixed for January 4th. On December 29th, Jameson invaded the Transvaal with 480 men. They got as far as Krugersdorp, about 31 miles distant from Johannesburg, and after a fight at Doornkop, in which the Raiders' losses were 18 killed and 40 wounded, and on the Boers' side four killed and five wounded, they surrendered on the condition that their lives should be spared.

That stipulation is forgotten when we fall to admiring President Krüger's magnanimity in handing over Jameson to the British Government.

The Profits from the Jameson Raid.

The trial by the Government of Pretoria of the sixty-four members of the "Reform Committee" was held in Johannesburg. Four of them, Mr. Lionel Phillips, Colonel Rhodes, Mr. George Farrar, and Mr. Hammond were condemned to death. The remainder were sentenced to two years' imprisonment and £2,000 fine, or failing payment, to another year's imprisonment and three years' banishment. The Executive reserved to themselves the right to confiscate their property.

In commutation of the four death sentences, the Government exacted £100,000; fifty-six other prisoners paid in a sum of £112,000. One of the

accused died, another who had pleaded not guilty, was so ill that his sentence was not carried out; Messrs. Sampson and Davies refused to pay the fine. The British Government left Mr. Krüger a free hand in the matter; it cannot be reproached with having interposed on their behalf—although it was its own representatives who persuaded the Johannesburg conspirators to deliver up their arms. In the moment of danger many and various hopes were held out by Mr. Krüger in his proclamation of December 30th, 1895. The danger once past, the promises were forgotten. He remembered the Jameson Raid only as an excuse for demanding an indemnity of £677,938 3s. 6d. for material damages, and a further £1,000,000 for damages "moral and intellectual."

In February, 1896, Mr. Chamberlain proposed to him "the autonomy of that portion occupied by mining industries" (see details of the proposal, letter of Mr. Chamberlain, published in *Le Siècle*, July 5th, 1899.) Mr. Krüger refused contemptuously. At the same time he got the Volksraad to pass a bill giving him the right to expel any foreigner, at his discretion, at a fortnight's notice. Mr. Chamberlain reminded him that this bill was contrary to Act 14 of the Convention of 1884. Krüger took no notice of this remonstrance, and the bill became law on October 24th. In December, 1896, Mr. Chamberlain made a renewed protest.

The correspondence continued. Mr. Chamberlain recapitulated the breaches of the Convention of 1884 committed by the Boer Government. In the summer of 1897, the act was at last repealed, but always with the unavowed intention of re-enacting it in another form.

Mr. Krüger persistently continued to refuse all demands for reform, becoming more and more insolent, while, thanks to the wealth brought to the exchequer by the gold mines, he continued to increase the very armaments against which the petitioners of 1894 had protested.

To all representations, his answer was "The Jameson Raid." To all Europe, his plea was "The Jameson Raid." If you mention Transvaal affairs to a Pro-Boer, he shuts you up at once with "what about the Jameson Raid?" He will listen to no arguments; and loses his temper. If you suggest that the Jameson Raid bears a certain analogy to the expedition of Garibaldi's One Thousand, he gazes at you with amazement. If you proceed to remark that the Jameson

Raid took place at the close of the year 1895; that we are now in 1900; that it is *res judicata*; that the British Government left Boer Justice a free hand to deal with the conspirators, he accuses you of having been bought by England. Not a whisper, of course, is heard about the millions of secret service money placed at the disposal of Dr. Leyds.

The Logical Consequences of the Jameson Raid.

According to the Boers, they are briefly: (1) The Jameson Raid of Dec. 29th, 1895, gives the South African Republic the right in perpetuity to regard the Convention of 1884 as null and void. (2) The Jameson Raid gives the Government of the South African Republic the right to treat all Uitlanders, especially the British, as Boers treat Kaffirs. (3) The Jameson Raid gives the Government of the South African Republic an undefined and perpetual right to plunder the Uitlanders.

YVES GUYOT.

CHAPTER I.

BOER APOLOGISTS.^[2]

1.—*Disregard of Facts and Subordination to the Vatican.*

I notice with satisfaction, that people, who a short time ago would not listen to a word about the Transvaal, are now no longer animated by the same spirit of confidence, and are even beginning to wonder whether they have not fallen into the same mistake made by so many in the Dreyfus case, who only began to entertain doubts after the exposure of the Henry forgery.

I have been asked "Why have you not answered Dr. Kuyper's article in the *Revue des Deux Mondes*?" and it appears that Dr. Leyds has been heard to say in Brussels: "M. Yves Guyot has made no answer to Dr. Kuyper's article." As though it were unanswerable!

I might well retort with the question: "Why does the Pro-Boer press never reply to counter arguments save by vague phrases, and evading the real issue? Why does the French press, in particular, confine itself to lauding "the brave Boers" and the "venerable President Krüger," and to extolling the virtues with which it credits them, instead of studying their actual social condition, and giving its readers the plain facts? Why do we not find one word in our papers of the articles by M.M. Villarais and Tallichet, published in the *Bibliothèque Universelle*.^[3]"

It is an exact repetition of the method employed by the Anti-Dreyfusard papers in the Dreyfus case. But the odd thing is, that many who were then exasperated by it, now look upon it as quite natural, and are not surprised to find themselves bosom friends of Drumont, Rochefort, Judet, and Arthur Mayer. The Transvaal question unites them in a "nationalist" policy, which, if it were to go beyond mere words, would result in a war with England and might complete, by a naval Sedan, the disaster of 1870.

The majority of Frenchmen have brought to the scrutiny of the matter a degree of pigheadedness that clearly proves the influence of our method of subjective education. We state our faith on words, and believe—because it is a mystery.

The *Revue des Deux Mondes*, in which Dr. Kuyper's article is published (February 1st), has become an organ of Leo XIII. Those free-thinkers, protestants, and Jews in France who take part in the Anglophobe movement, are thus naively furthering the aims of the Vatican and the Jesuits, whose endeavour has ever been to stir up Europe against England—England that shall never be forgiven for the liberalism of her institutions, for the independence of her thinkers, and for her politics, to which they attribute, not without reason, the downfall of the temporal power.

The apologetic portion of Dr. Kuyper's article shows the Boers in their true light. Far from refuting it, I will quote from it. The critical part obscures the points at issue. I will clear them up.

2.—*The Boers, the Natives, and Slavery.*

Dr. Kuyper's article begins with the words: "Once more the yuletide has sent forth the angelic message 'Peace on Earth,' even to where the natives gather at the humble chapels of our missionaries."

Dr. Kuyper then undertakes to show us how the Boers understand "the angelic message" in their treatment of the coloured race. He begins by waxing wroth with the English who, in 1816, in consequence of the representations of their missionaries, had instituted an enquiry as to the manner in which the Boers treated their slaves, "England humiliated them before their slaves," he says. The English also protected natives.

Dr. Kuyper says:—

"With little regard for the real rights of their ancient colonists, *the English prided themselves on protecting the imaginary rights of the natives.*"

The italics are his own. This virtuous protester continues:—

"Deceived by the reports from their missionaries, little worthy of belief, and led astray by a sentimental love for primitive man, 'The Aborigines Protection Societies,' so drastically exposed by Edmund Burke, saw their opportunity. With their Aborigines Societies, the deists posed in the political arena as protectors of the native races, while, in religious circles, the Christians with their missionary societies posed as their benefactors."

Dr. Kuyper forgives neither the deists nor the missionaries. And what of the Boers?

"The Boers had introduced a system of slavery copied from that adopted by the English in their American colonies; but greatly modified. I do not deny that, at times, the Boers have been too harsh, and have committed excesses....

"The Boers are not sentimentalists, but are eminently practical. They recognised that these Hottentots and Basutos were an inferior race....

"The Boers have always resolutely faced the difficulty of the colour question so persistently kept out of view by the English."

And Dr. Kuyper goes on to speak of the multiplication of the blacks in South Africa. He dare not point to the logical solution, which would be to regulate matters by extermination, pure and simple; but he gives vent to his hatred of the English who, far from checking that multiplication, assist it by their humane treatment of the natives. He is especially wrathful with English missionaries, "those black-frocked gentlemen." He states that the Boers do their best "to keep them at a distance"; and he cites, as a fact, which fills him with indignation and alarm:—

"A coloured bishop has been appointed president of a kind of negro council in Africa."

I confine myself to quoting Dr. Kuyper. He shows too plainly the character, passions, and hatreds of the Boers, to render comment necessary. He acknowledges that the Great Trek, the emigration northwards, did not begin till after 1834, when, according to the manifesto of 1881, known as the Petition of Rights, "in consequence of the enforced sale of their slaves, the

old patriarchal farmers were ruined." This document represents that it was treating them "with contumely" to offer them money compensation, adding regretfully "that the greater portion of the money remained in the hands of London swindlers." The regret and the contumely are difficult to reconcile. Ancestors of the Boers had more than once acted in a similar manner towards the Dutch East India Company when dissatisfied with their administration, and unwilling to pay their taxes. But Pro-Boers have a curious habit of magnifying things. One would imagine, to hear them speak, that every Boer in the Cape had packed wife, children, and goods into ox-wagons and had trekked north. As a matter of fact, the greater proportion remained behind, and their descendants formed the majority of the 376,000 whites enumerated in the census of 1891. The Great Trek was really composed of various detachments which started one after another in 1836. Statistics of the numbers of trekkers vary from 5,000 to 10,000. I have not been able to trace whether these figures refer only to adult males, or whether they include the women and children. In any case, when discussing South African affairs, we must always bear in mind the small number of persons concerned, in comparison with the vast extent of the area in question.

Not only these trekkers, but all who, from the period of the seventeenth century onwards, had had the tendency to wander from the Cape, belonged to the most adventurous and warlike portion of the population. They had spread themselves over an enormous tract of country, and were in close touch with kaffirs and bushmen, cattle-lifters using poisoned arrows. Living in isolated families, they acquired, in the course of their unceasing struggle with their savage neighbours, not only their qualities of daring and warlike skill, but habits of cruelty and cunning as well.

3.—*Essentially a Man of War and Politics.*

Between the Dutchman of Amsterdam, Haarlem, the Hague, or Rotterdam, installed in his comfortable dwelling, cultivating his tulips, priding himself upon his pictures, and drinking his beer, and the Boer, pure and simple, there is not the slightest analogy.

This Dr. Kuyper acknowledges. The Boer population is a compound of Dutchmen, Frenchmen, Huguenots, Germans and Scotchmen. Krüger and Reitz are of German, Joubert and Cronje, of French origin. Here is what Dr. Kuyper, himself, says of the Boers:—

"The word Boer signifies 'peasant,' but it would be a mistake to compare Boers with French peasants, English farmers, or even the settlers of America. They are rather a *conquering race*, who established themselves among the Hottentots and Basutos, in the same manner that the *Normans, in the XIth Century, established themselves among the Anglo-Saxons*. Abstaining from all manual labour, they devote themselves to their properties, sometimes as much as 5,000 to 6,000 acres in extent, and to the breeding of cattle and horses. Beyond this, their object in life is hunting lion and big game. *The Boer is essentially a man of war and politics.*"

Here we have the true Boer, and not the idyllic "small farmer" pictured to us by a contributor to *Le Temps*. He is essentially the "man of war and politics," the counterpart of an Arab chief, the sole difference being that the Boer is not a polygamist and has no tribe under him; on the contrary, the Boers swarm off in isolated groups or families. Their conception of life is, however, the same. I quote here from my treatise on *The Evolution of Property* (p. 46) on the subject of Pastoral Tribes:—

"It was at one time the fashion to hold up pastoral tribes and the patriarchs with their long flowing beards, as subjects of admiration. Long-bearded patriarchs were objects of veneration. Despite the quarrels of Esau and Jacob, and the story of Joseph sold by his brethren, pastoral life was pictured to us as mild as milk, as innocent as that of sheep in the fold, until Renan pointed out its qualities and defects. At the same time we were told of the Bedouins "with saddle, bridle, and life on the Islam," always mounted, always armed, always engaged in war or razzias and mutual pillage; of the Turkomans and their motto: 'Thy soul is in thy sword'; and those who thus celebrated the amenities of pastoral life, and the heroic adventures of the Arabs

of the desert, never perceived the contradictions they had fallen into."

At the end of that Chapter I spoke of the Boers, according to Levaillant, "the most carnivorous of men," as having turned out of their possessions the nomadic Hottentot and Kaffir shepherds. *The Boers represent that form of warlike and political civilisation in which production is indirect, and obtained by utilising the labour of others.* It is a type of that ancient pillaging civilisation which we call war-like, when its methods have been reduced to rules. In this stage politics mean the organisation of pillage. Mr. Kuyper is right. "The Boer is essentially a man of war and politics." He has employed his talents at the expense of Hottentots and Kaffirs; he has continued to employ them to the detriment of the Uitlanders; and he thought the time had come to realise his programme of February 17th, 1881, formulated by Dr. Reitz at the end of his official pamphlet,^[4] "Africa for the Africanders from the Zambesi to Simon's Bay." We have seen what view, according to his apologist, "the man of war and politics" takes of his relations with the natives; we shall now see how he regards his relations with the whites.

CHAPTER II.

ENGLISH AND BOERS.^[5]

1.—*The Ideal of the Boers.*

No French Pro-Boer has reproduced the portrait I have published, as given by Dr. Kuyper. It disturbs the conception presented to their readers by journalists, whose dishonesty is only equalled by their ignorance. Quoting his own statements, I have shown Boer relations with the natives; I will now proceed to show their relations with the English.

In addition to Dr. Kuyper's evidence, I will avail myself of a document from Boer sources: The Petition of Rights, addressed to the President of the Orange Free State, February 17th, 1881, and bearing Krüger's name at the head of the list of signatures. This document clearly shows not only the manner in which Boers write history, but also that, five years before the discovery of the Gold Mines, they cherished as their ideal, not only the preservation of their independence, but the driving out of the English from all South Africa: "From the Zambesi to Simon's Bay, *Africa for the Afrikanders!*" This is the rallying cry with which the document ends, and we find it repeated by Dr. Reitz, as the concluding words of his pamphlet, "A Century of Injustice."

2.—*The English in South Africa.*

Dr. Kuyper cannot forgive the English their occupation of the Cape. Yet, they had only followed the example of the Dutch who, during their war with Spain, 1568-1648, had seized the greater portion of the Portuguese colonies, because Portugal had been an ally of Spain. Holland had been forced into an alliance with France, and in exactly the same way, in 1794 and 1806, England seized the Cape. In 1814 she bought it from the Prince of Orange. Dr. Kuyper does not deny that the price was paid, but remarks that it did not replenish the coffers of the prince. Be that as it may, the treaty

is none the less valid, and the "Petition of Rights" begins by protesting against "the action of the King of Holland who, in 1814, had ceded Cape Colony to England in exchange for Belgium." The English valued the newly acquired colony only as a naval station; they did not endeavour to extend the territory they occupied. Professor Bryce clearly shows in his "Impressions of South Africa" that if England had enlarged her possessions it had been in despite of herself, and solely to ensure their safety; although, from the treatise "Great Britain and the Dutch Republics," published in *The Times*, and reproduced in *Le Siècle*, it is evident that she had always considered that her rights in South Africa extended to the frontier of the Portuguese possessions; that is to say, to the 25° of latitude, in which latitude Delagoa Bay is situated.

Dr. Kuyper begins by himself putting us somewhat on our guard concerning his feelings towards England; for, not only does he decline to forgive her the occupation of Cape Colony, but also her triumph over Holland in the eighteenth century.

"Nowhere had resentment against 'perfidious Albion' penetrated national feeling more deeply than in the Netherlands. Between the Dutch and English characters there is absolute incompatibility."

As a rule, I attach little faith to such generalities; in this case, I am sure, rightly. Forgetting his dictum of "absolute incompatibility" (p. 449), Dr. Kuyper, at p. 520, shows that, as far as he is concerned, it is only relative; for in speaking of England, he goes on to say:—

"Were I not a Dutchman, I should prefer to be one of her sons. Her habitual veracity is above suspicion; the sense of duty and justice is innate in her. Her constitutional institutions are universally imitated. Nowhere else do we find the sense of self-respect more largely developed."

Dr. Kuyper further admits that the "incompatibility" is relative as far as Afrikanders are concerned, it is only "absolute" as applied to the Boers. After giving us this example of the consistency of his views, Dr. Kuyper speaks of the English as being "unobservant." A reproach somewhat unexpected, when directed against the countrymen of Darwin. As a proof,

he presents us with this metaphor, equally unexpected from the pen of a Dutchman—a dweller of the plains:—

"Because, in winter, the English had only seen in these insignificant river beds a harmless thread of frozen water, they took no thought of the formidable torrent which the thawing of the snow, in spring, would send rushing down to inundate their banks."

"The torrent" is of course the war now going on. Lord Roberts seems to be successfully coping with the "inundation."

3.—*"The Crime."*

Dr. Kuyper approves of the "Petition of Rights" of 1881. It sets forth that the South African Dutch do not recognise the cession made by the King of Holland in 1814; it does not admit that he had the right to "sell them like a flock of sheep." There have been Boers in rebellion since 1816.

One of these was a man named Bezuidenhout. In resisting a Sheriff who tried to arrest him, he was shot. His friends summoned to their aid a Kaffir Chief, named Gaika. The English authorities condemned five of the insurgents to be hanged. The rope broke. They were hanged over again.

Dr. Kuyper, and the "Petition of Rights" found their indictment of the British upon this event which they denominate "the Crime." The scene of the execution was named "Slachtersnek," "hill of slaughter."

This act of repression was violent, but it may possibly have been indispensable. At any rate, it bears but a very far off relation to the events of to-day. Dr. Kuyper in resuscitating, and laying stress upon it, follows a method well known in rhetoric; he begins by discrediting his adversary. However, despite his good intentions, he has not increased our admiration for the Boers by pointing out to us that the most serious grievances they can allege against the English are the protection accorded by the latter to the natives and slaves, and the final emancipation of the latter.

4.—*British Sphere of Influence in 1838.*

In a few lines Dr. Kuyper draws a conventional picture of British policy with regard to the Boers, making it out to be ever greedy of power. The contrary is the truth. A vacillating and timid policy has been England's great mistake in South Africa; it is this very vacillation that has brought about the present war.

Dr. Kuyper bitterly reproaches the English for having in 1842, six years after the Great Trek, claimed those emigrants as British subjects. The Great Trek was similar to the emigration of the Mormons. The United States have never admitted that they were at liberty to found a separate State within the limits of the national possessions. If on the same ground alone English had proclaimed their suzerainty over the Boers who were endeavouring to form States in Natal, the Orange Free State, and the Transvaal, they would have been perfectly within their rights; but Dr. Kuyper forgets that as far back as 1836 England promulgated the *Cape of Hope Punishment Act*. The object of that Act was to repress crimes committed by whites under English dominion throughout the whole of South Africa, as far north as the 25° South Latitude; that is, as far as the Portuguese frontier; and it is so thoroughly imbued with that idea, that it specially excepts any Portuguese territory south of that latitude. It is thus proved that with the exception of the portions occupied by the Portuguese, England claimed, as comprised within her sphere of influence, the whole of the remaining South African territory. A certain number of Boers, irreconcilably opposed to British rule, so fully recognised this, that they trekked as far as Delagoa Bay. Another object of the Act was the protection of the Natives against the Boers. The constantly recurring and sanguinary conflicts between the Boers and the Zulus led England to extend her direct sovereign rights to Natal for the peace, protection and good government of all classes of men, who may have settled in the interior or vicinity of this important part of South Africa.

5.—*England, the Transvaal, and the Orange Free State.*

Far from being anxious to assume direct control over these territories, the Cape Government for a long time disregarded the petitions for annexation addressed to it by the inhabitants of Durban; until one fine day, a Dutch vessel laden with provisions for the Boers, arriving in Port Natal, the Captain, Smellekamp, took it upon himself to assure them of the protection

of the King of Holland. Thereupon, England established a small garrison under the command of Captain Smith. It was attacked by the Boers; a volunteer, named Dick King, contrived to make his escape from the town, and after an adventurous journey reached Grahamstown. Troops were despatched by the Government, and it was incorporated with the Cape Colony; some of the Boers left Natal, some remained; their descendants are there to-day.

In 1848 the Government entered into a series of treaties known as the "Napier Treaties," for the constitution of Native States extending from Pondoland, on the frontiers of Natal, to the district of which Kimberley forms the centre (see *Great Britain and the Dutch Republics*). Great Britain demanded no more than peace and guarantees of security on her frontiers. Dr. Kuyper himself admits this, when he sums up in the following sentence, the history of the emancipation of the Transvaal and the Orange Free State.

"Natal was to remain an English Colony, but the English were to retire from the Orange and Vaal rivers; it was thus that the Independence of the Transvaal was recognised by the Treaty of Sand River, of 17th January, 1852; and the Independence of the Free State by the Convention of Bloemfontein, of 22nd February, 1854."

Dr. Kuyper is compelled to admit that England was not forced into this act of generosity, she having on the 29th August, 1848, defeated the Boers at Boomplaats, on the Orange table land.

But Dr. Kuyper forgets to say that the majority of the Free Staters were far from desiring the gift made to them by the British Government in 1854. They considered it not as a measure of liberation, but as an abandonment to the tender mercies of the Basutos. Some years later the Orange Free State entered into an arrangement with Sir George Grey, for forming a Confederation with Cape Colony. This was not ratified by the Cape Government.

Nor do we find that Dr. Kuyper takes notice of certain stipulations contained in the above Conventions; among others, the abolition of slavery, and free permission to merchants and missionaries to travel and settle where

they pleased; which obligations continued to England the right of control over the administration and legislation of those States.

The development of subsequent events is explained by Dr. Kuyper in the simplest possible manner:—

"The promptings of selfish and aggressive materialism now took unchecked sway, and, although bound by solemn treaties which England could not thrust aside without open violation of pledged faith, she did not hesitate. The diamonds of Kimberley in the Free State flashed with a too seductive brilliancy, and the Gold Mines of the Rand became the misfortune of the Transvaal."

I would here observe to Dr. Kuyper that England's friendly relations with the Orange Free State, remained unbroken until October 9th, 1899, when, led away by Krüger's promises, it committed the folly of engaging in war with England.

As for the Transvaal, it was annexed by England in 1877, but not on account of the Gold Mines, which were only discovered ten years' later. Dr. Kuyper has a trick of neglecting dates, and arranging his facts after the fashion of an advocate who supposes that those whom he is addressing will be content with his assertions, and not trouble to verify them. For his rhetoric, I shall substitute the actual facts.

CHAPTER III.

THE ANNEXATION OF THE TRANSVAAL AND THE CONVENTIONS OF 1881 AND 1884.[\[6\]](#)

1.—*The "Gold Mines" Argument.*

When Dr. Kuyper asserts that "the gold mines of the Rand became the misfortune of the Transvaal," it is clear, that in his endeavour to convince his readers, he has no regard to the facts of the case, but that his aim is to suggest the idea that England's sole object in the present war has been to possess herself of the gold mines. Here Dr. Kuyper employs the arguments of *L'Intransigeant*, *La Libre Parole*, and *Le Petit Journal*; for he is perfectly well aware that England will derive no benefit from the gold mines, nor will she take possession of them any more than she has done of the gold mines of Australia. They are private property.

Further, Dr. Kuyper well knows that the gold mines of the Rand were only discovered in 1886, and he himself states that the annexation of the Transvaal took place on April 12th, 1877. The annexation therefore was prompted by other motives than the possession of the gold mines, but Dr. Kuyper is careful not to suggest these to his readers.

He informs us that Sir Theophilus Shepstone "entered Pretoria at the head of a small army." In reality, he had with him five-and-twenty policemen. Why then did the Boers, "so essentially men of war and politics," permit this?

"Once again, the fate of the natives served as pretext," Mr. Kuyper adds "but the wheel of fortune turns; two years later the English, themselves, were at daggers drawn with the natives, and massacred 10,000 men, women and children." That is how Dr. Kuyper writes history! The pretext was not the fate of the natives, but the fate of the Boers, who, having gone to war with Sekukuni, had been beaten. This is admitted in the "Petition of

Rights": "At first, our operations were not very successful, our opponents declare that we were unable to defend ourselves against the natives."

2.—*Boer Anarchy.*

The truth is, that after the Sand River Convention, the most complete anarchy existed among the Transvaal Boers; and that as much after the promulgation of their Constitution of 1857 as before. The republicans of Potchefstroom had taken the title of *The South African Republic*, but their Raad maintained authority only over a small district; Lydenburg, Zoutpansberg, Utrecht, formed themselves into independent republics. It is estimated that, at that time, the entire population of the Transvaal consisted of 8,000 Boers; admitting that this number comprised only the young men and adults capable of bearing arms, and old men, then each republic would be composed, approximately, of 2,000 men. On the death of Andries Pretorius and of Potgieter, who hated each other like poison, the son of Pretorius conceived the design of making himself master of the Orange Free State, so as to secure to himself later on the foremost position in the Transvaal. A war was on the point of breaking out, but came to nothing, as Pretorius hastily recrossed the frontier in the face of an advance by Boshof, the Free State President, at the head of a commando. This action, which demonstrated that his courage and resource were less lofty than his ambition, did not however prevent his being elected President of the South African Republic. In 1860 the union took place.

Notwithstanding his incursion and subsequent flight, Pretorius succeeded in getting himself elected president of the Orange Free State also. But the Transvaal burghers dreaded absorption by their neighbours, and deposed him. A petty civil war between his partisans and opponents was the consequence; several presidents were elected and deposed. Krüger, whom we now see making his appearance, and Schoeman, in turn, chased each other out of Potchefstroom. In 1864 Pretorius forsook the Free State, and was re-elected President of the Transvaal, Krüger contenting himself with the office of Commandant-General.

The Orange Free State was at war with the Basutos. The English Government intervened, and finally annexed Basutoland (1868).

In the same year, the Transvaal Government, disregarding the Sand River Convention, issued a proclamation extending their frontier in the east to the seaboard; in the West to Lake Ngami, and in the North to Mashonaland. The Portuguese and English Governments entered protests and the matter dropped.

No minister of the Reformed Dutch Church had accompanied the Boers in their Trek. They therefore formed themselves into a separate reformed Church, whose members called themselves "doppers" (round-heads). They allow no liberty of thought; they believe in literal inspiration. If they had ever heard of Galileo, they would have looked upon him as an impostor. They place the authority of the Old Testament above that of the New. There are three contending sects in the Transvaal, whose hostility is such that both before and after 1881 threats of Civil War were indulged in.

3.—*The Boers saved by the English.*

In 1871, the question of fixing the frontier between the Transvaal and the Barolong, a Bechuana tribe, was submitted to arbitration. The decision was given by Mr. Keate, Governor of Natal. President Pretorius having accepted it, the Boers deposed him, and continued to occupy the territory to which they laid claim. They were at a loss whom next to elect as President.

Overtures were made to Mr. Brand, President of the Orange Free State; but he wisely refused. They next turned to a Cape Afrikaner, a former minister of the Dutch Reformed Church, Mr. F. Burgers, a capable, intelligent man. It was his desire to correct abuses; to repress the slavery that was being carried on under the name of "apprenticeship"; to introduce railways and schools; he claimed the right to impose taxation, he got to be credited, in the long run, with the belief that the devil's tail was not as long as it is represented in the old Bible pictures. When the Boers were defeated by Sekukuni, they looked upon it as a punishment from God for having a "free thinker" for President. The commandos disbanded themselves. At the same time Cetewayo, the Zulu Chief, was threatening the Boers in the south. Caught between two fires, without resources or organisation, annihilation was before them. Now the English, for their own security, had the greatest interest in preventing the extermination of white men by natives; and on

that ground, apart from all sentimentality, they had never ceased to protest against the methods employed by the Boers, as the surest means of bringing about that result. Theophilus Shepstone, who possessed great influence over the Zulus, was sent to Pretoria. Unable, even with the help of their President, to bring any order into the Government of the Transvaal, he ended by annexing it on 12th April, 1877. He annexed it in order to save it. Had the English abandoned it to itself, the Boer territory would have been occupied by Basutos and the Zulus, and the Boers would have disappeared from the face of the earth.

4.—The Annexation of the Transvaal and the Conventions of 1881 and 1884.

M. Kuyper is very unjust when he reproaches the English with the massacre of the Zulus; for it was all to the profit of the Boers, who, it may be added, rendered no assistance. Once delivered from their native enemies by the English, the Boers appointed, December 16th, 1880, a triumvirate, composed of Pretorius, Krüger and Joubert. They demanded the re-instatement of the South African Republic, under British protection; they commenced attacking small detachments of English troops, and on February 27th they surrounded a force on Majuba Hill, killing 92 officers and men, General Colley among them, wounding 134, and taking 59 prisoners. That is what is called "the disaster of Majuba Hill." An army of 12,000 men was on the way out; Mr. Gladstone, in his Midlothian Campaign, had protested against the annexation; and, although, after he became Prime Minister, he supported it in the speech from the Throne, the hopes he had given to the separatists proved well founded, for after this defeat he became a party to the Convention of 1881, by which the independence of the Transvaal, under the suzerainty of England, was recognized.

5.—The Convention of 1881 inapplicable.

It must be confessed, that the Liberal Government committed a grave error. It seemed afraid of a rebellion among the Afrikanders of the Cape; and these quickly learned that threats only were needed to induce the English

Government to yield to their demands. The English Garrison in Pretoria was withdrawn; no reparation was exacted from the Boers who, under the command of Cronje, had conducted themselves in an infamous manner at the siege of Potchefstroom, and had been guilty of actual treachery in the case of Captains Elliot and Lambert.

True, the Convention prescribed the suppression of slavery; gave guarantees for the safety of the persons and property of alien whites; placed the foreign relations of the Transvaal under the control of the British Government. But, in reality, it was of little value, for the English Resident was in the position of a man who has been conquered with the pretension of controlling the actions of the conquerer.

At the first election under the new conditions, Krüger, who represented the extreme reactionary party, was elected President, although he had accepted office under the British Government, while Joubert, who had declined any dealings with them, was defeated, being suspected of sympathising with the Uitlanders. His defeat does not prove him to have been in the minority. His partisans affirm, with a fair show of reason, that Mr. Krüger never greatly respected the sanctity of the ballot.

6.—*Violation by the Boers.*

The powerlessness of the British Government to ensure respect for the Convention of 1881, explains its consent to the modification of 1884. "It would be easy to find a *casus belli* in the behaviour of the Boers," said Lord Derby in the House of Lords. But the Government had no wish to find one, and added to the weakness it had displayed after Majuba a fresh show of weakness, which convinced Mr. Krüger that the violation of a convention was the easiest method of obtaining anything he wanted.

In point of fact, it is the British Government that is responsible for the present war, through having inspired President Krüger with the conviction, that he had only to continue in 1899 the policy which had succeeded so well in 1880.

CHAPTER IV.

ARTICLES OF THE CONVENTION OF 1884.[\[7\]](#)

1.—*Krüger's Point of View.*

Dr. Kuyper has a simple method of solving difficulties. Speaking of Article 4 of the Convention of 1884, which gives England the right of veto on all treaties contemplated between the South African Republic and foreign powers, he says:—

"This is not Mr. Krüger's point of view. He, like us, has always stigmatised the occupation of 1877 as a violation of the Sand River Treaty."

Mr. Krüger did not stigmatise it thus when he accepted office from the English Government. But, in any case, he was party to the negotiations which resulted in the Conventions of 1881 and 1884. Dr. Kuyper tells us that neither he nor Mr. Krüger recognise them, considering them to have been vitiated by the Annexation of 1877. Be it so; but in that view discussion is useless. Mr. Krüger held them as null and void. He has chosen his own time to declare war. A government has always the right to tear up a treaty just as a private individual has the right to refuse implement of a contract. In the case of the individual, his refusal exposes him to a claim of damages; in the case of a country, the result is war. It is the simplest thing in the world; but then why go seeking for pretexts and explanations, and worrying oneself about making everybody believe that it was England who brought about the war, when after all she was only claiming the due execution of a convention?

2.—*England's Obligations.*

When Mr. Gladstone committed the error of entering into the Convention of 1881, he fully believed that he was guaranteeing the rights of English and

foreign residents in the Transvaal, of the Boers who might have compromised themselves with the English, and also of the natives.

At a meeting in Birmingham, on March 8th, 1881, on the motion of Sir Wilfrid Lawson, a resolution was passed demanding that "satisfaction should be given to the claims of the Boers, without prejudice always to the rights of the natives and English residents." On July 25th, Sir Michael Hicks-Beach reminded the House of the necessity for exacting the necessary guarantees, and of ensuring the tranquillity and security of the English possessions.^[8] He reminded the House of the position of those 3,700 Boer petitioners who had asked for annexation, and of the British residents who had invested capital in the Transvaal, upon the guarantee of the British Government. Mr. William Rathbone proposed a resolution demanding equal political rights for all the white population in the Transvaal. Mr. Chamberlain stated that "loyal settlers" should be protected in their legal rights, lives, and property. Mr. Gladstone, at the close of the debate, stated that "they would all be in a position of most perfect equality with the other inhabitants." (July 25th, 1881.)

Thus, the British Government deliberately affirmed its obligations towards the foreign, British, and black population of the Transvaal, and its determination not to forsake them.

3.—Equality of Rights among the Whites according to Mr. Krüger in 1881.

The Blue Book of May, 1882, contains the report of the meeting of the British and Transvaal Commission of May 10th, 1881.

Mr. Krüger was a member of the latter, Sir Hercules Robinson was Chairman. Here is a dialogue between the Chairman and Mr. Krüger:—

"The Chairman: 'Before the Annexation, did British subjects enjoy the rights of complete freedom of trade throughout the Transvaal? Were they on the same footing as the citizens of the Transvaal?'"

"Mr. Krüger: 'They were on the same footing as the burghers. In accordance with the Sand River Convention there was not the slightest difference.'"

"Sir Hercules Robinson: 'I presume you do not object to that continuing?'"

"Mr. Krüger: 'No. There will be equal protection for everybody.'"

"Sir Evelyn Wood: 'And equal privileges?'"

"Mr. Krüger: 'We make no difference so far as burgher rights are concerned. There may be, perhaps, some slight difference in the case of a young person who has just come into the country.'"

On the 26th May, Dr. Jorissen, a Boer delegate, reverting to the question, said:—

"Concerning the paragraph referring to a young person, I desire to remove what may create an erroneous impression. What Mr. Krüger meant to say is this; according to our law, a newcomer is not immediately considered a burgher. The words 'young person' have not reference to age but to length of residence. According to our ancient 'Grondwet' (constitution) you must have resided one year in the country to become a burgher."

These minutes were not compiled for the present occasion, for they were published in 1882.

4.—Preamble of the Convention of 1881.

The preamble of the convention is in the following terms:—

"Her Majesty's Commissioners for the settlement of the Transvaal territory, duly appointed as such by a Commission, &c., the 5th day of April, 1881, do hereby undertake and guarantee on behalf of Her Majesty, that from and after the 8th day of August, 1881, complete self-government, subject to the

suzerainty of Her Majesty, her heirs and successors, will be accorded to the inhabitants of the Transvaal territory."

It is evident that this is not a treaty between two parties contracting on a footing of equality. The English Government grants the Transvaal the right of self-government, reserving the suzerainty under certain conditions. I have already shown the difficulties in the way of carrying out the Convention of 1881, the false position of the Resident who was as one conquered, was supposed to control the actions of the conqueror; and I have also spoken of the great and long suffering of the English Government.

Mr. R.D. Faure, who acted as interpreter to the Conference of 1884, has stated that "the Transvaal delegates asked for a clause suppressing the suzerainty, and that Lord Derby refused it." To this Mr. R.G.W. Herbert, Permanent Under Secretary for the Colonies, replied "that the Commissioners did not venture to ask for the abolition of the suzerainty." They confined themselves to asking in their letter to Lord Derby of November 14th, 1883, that "the relation of dependence, *publici juris*, in which our Country finds itself placed with regard to the Crown of Great Britain should be replaced by that of two contracting parties."

Lord Derby on 29th November, answered that "neither in form, nor in substance could the Government accept such a demand." The Government thus refused to substitute a "treaty" for a "convention" in which the Queen granted to the Transvaal the right of self-government under certain conditions.

5.—Articles 4, 7 and 14 of the Convention of 1884.

These conditions are determined by the articles 4, 7 and 14 of the convention of 1884, of which the following is the text:—

"Article 4. The South African Republic will conclude no treaty or engagement with any State or Nation other than the Orange Free State, nor with any native tribe to the Eastward or Westward of the Republic, until the same has been approved by Her Majesty the Queen.

"Such approval shall be considered to have been granted if Her Majesty's Government shall not, within six months after the receipt of a copy of such treaty (which shall be delivered to them immediately upon its completion), have notified that the conclusion of such treaty is in conflict with the interests of Great Britain, or of any of Her Majesty's possessions in South Africa.

"Article 7. All persons who held property in the Transvaal on the 8th day of August, 1881, and still hold the same, will continue to enjoy the rights of property which they have enjoyed since the 12th April, 1877. No person who has remained loyal to Her Majesty during the late hostilities shall suffer any molestation by reason of his loyalty; or be liable to any criminal prosecution or civil action for any part taken in connection with such hostilities; and all such persons will have full liberty to reside in the country, with enjoyment of all civil rights, and protection for their persons and property.

"Article 14. All persons, other than natives, conforming themselves to the laws of the South African Republic (a) will have full liberty, with their families, to enter, travel, or reside in any part of the South African Republic; (b) they will be entitled to hire or possess houses, manufactories, warehouses, shops, and premises; (c) they may carry on their commerce either in person or by any agents whom they may think fit to employ; (d) they will not be subject, in respect of their persons or property, or in respect of their commerce or industry, to any taxes, whether general or local, other than those which are or may be imposed upon Citizens of the Republic."

In Dr. Kuyper's estimation the Articles 7 and 14 are as nothing. I do not even think he makes mention of them in his article (fifty-three pages in length), that has appeared in the *Revue des Deux Mondes*. Thus, nothing is easier than to argue in the vacuum he creates about his readers. They hear nothing but words; of the facts they are kept in ignorance.

CHAPTER V.

LAW AND JUSTICE IN THE TRANSVAAL.[\[9\]](#)

1.—*Contempt of Justice.*

I stated at the close of my last article that I did not think that Dr. Kuyper had even made mention of Articles 7 and 14 of the Convention of 1884. I find that I was mistaken. He has said a few words about the latter, to draw from it the inference that it did not give the right of franchise to Uitlanders. He is right.

But Articles 7 and 14 guarantee to all white men, civil rights, the protection of their persons and property, the right to enter into trade, and equality of taxation. How did the Boers construe the application of these conditions of the Convention of 1884? As early as 1885 Mr. Gladstone found himself obliged to send Sir Charles Warren to prevent the Boers from invading Bechuanaland. Mr. Krüger had already attacked Mafeking, and annexed the territory. The Boers retreated, but brutally murdered a man named Bethell who had been wounded by them.

That same year, the case of Mr. James Donaldson came before the House of Commons. He held property in Lydenburg. He had been ordered by two Boers (one of whom was in the habit of boasting that he had shot an unarmed Englishman since the beginning of the war, and had fired on several others) to abstain from collecting hut taxes on his own farm. On his refusal he was attacked by them; three other Boers joined them, and he was left in such a condition that he was thought to be dead.

Upon the representations of the English Government the aggressors were condemned to pay a fine; but the Government of Pretoria remitted it!

An Indian, a British subject and man of education far superior to that of the greater part of the Boers, while following a bridle path trespassed on the farm property of a member of the Volksraad, named Meyer. He was

arrested, and accused of intent to steal. Sent before the owner's brother, who was a "field cornet" (district judge), he was condemned, with each of the Hottentot servants accompanying him, to receive twenty-five lashes, and to pay a fine. Rachmann protested, declared that the field cornet was exceeding his authority, intimated an appeal, and offered bail of £40; notwithstanding, he received the twenty-five lashes. George Meyer, the field cornet, knew perfectly well that he was exceeding his authority, but thought it too good a joke to desist. The Court, presided over by Mr. Jorissen, condemned him to pay damages to Rachmann. This was reimbursed to Meyer by the Government, and, despite the judgment of the Court, the President said he was in the right, and that he would protect him.

This is the way in which Mr. Krüger understands justice towards Europeans and European subjects; let us see how he understands it with regard to natives.

A Kaffir, named April, having worked several years on a farm, asked for his salary as agreed in cattle and a pass. The farmer refused him the cattle, and wanted to force him, his wives, and children, to continue working for him. The Kaffir appealed to the field cornet Prinsloo, who treated him as an unruly slave. The Court condemned Prinsloo for abuse of power. Some days later the President announced that he had reimbursed Prinsloo his expenses and damages, remarking: "Notwithstanding the judgment of the Court, we consider Prinsloo to have been in the right."

2.—Confusion of Powers.

The Volksraad confuses legislative and judicial functions. Should a judgment displease it, it arrogates to itself the right to annul it. Nor is there any more respect shown by the Volksraad for contracts, and, on one occasion, it solemnly accorded to the Government the right to annul clauses which had ceased to be satisfactory. It is unnecessary to add that the principle of the non-retrospectiveness of laws is altogether unknown to it.

In the Dom case the Volksraad passed a resolution disabling the aggrieved individual from taking action against the Government.

Early in the year 1897, the Government appointed for a given day, the allocation of the Witfontein farm in "claims" (mine concessions of 150 by 400 feet). At the last moment it was announced that the claims would be decided by lottery; several persons having made known that they intended to sue the Government for their claims already pegged out, a measure was passed by the Volksraad declaring all such actions null and void.

A Mr. Brown, an American, took proceedings. The President of the High Court, Mr. Kotzé, pronounced that this law was unconstitutional, and gave judgment in favor of Brown, but left the amount of damages to be determined later after hearing further evidence.

Upon this, Mr. Krüger introduced a law known as Law I. of 1897, which empowered him to exact assurances from the judges that they would respect all resolutions of the Volksraad, without testing whether they were in accord or contradiction with the Constitution; and in the event of the President not being satisfied with the replies of the judges, it further empowered him to dismiss them summarily. The judges protested in a body that they would not submit to such treatment. The High Court was suspended and all legal business adjourned.

Sir Henry de Villiers, Chief Justice of Cape Colony, came to Pretoria to endeavour to avert the crisis. Mr. Krüger promised to refrain from enforcing Law I. of 1897, and to introduce a new law. The judges resumed their functions.

In February, 1898, a year later, President Krüger had not introduced a new law; President Kotzé wrote to Krüger reminding him of his promise. Mr. Krüger at once applied to him Law I. of 1897, and dismissed him.

Kotzé was replaced by Mr. Gregorowski, who, at the time the law was passed had solemnly protested that no honourable man could continue to act as a judge in the Transvaal until the law was repealed.

Now what does Dr. Kuyper think of the Volksraad's mode of legislation, and of the manner in which Mr. Krüger, that man "of intelligence and superior morality," interprets respect for justice?

CHAPTER VI.

POLICE, JUSTICE, AND LAW ACCORDING TO BOER METHODS. [\[10\]](#)

1.—*Legal and Judicial System of the Transvaal.*

In the Transvaal, law is an instrument made use of either to favor or oppress the individual, according to circumstances. If necessary it is made retrospective. To provide for the case of judges refusing to apply such laws, Law I. of 1897 has been passed, which compels them to swear obedience to the President and gives him the right to dismiss summarily such as prove insubordinate or lukewarm. The President of the High Court, Mr. Kotzé, fell under the action of this law, in February, 1898.

Before that law, the President annulled any judgments that displeased him and caused the fines or damages inflicted upon the delinquents to be paid out of the public Treasury.

Such is judicial and legal rule in the Transvaal; and there are European lawyers of the opinion that the Uitlanders must be the most contemptible and lowest set of adventurers for not being satisfied with it! Dr. Kuyper declares that "the factitious discontent existed only among the English"; and adds with contempt, "Let us look into the Edgar, Lombaard, and Amphitheatre cases—mere police affairs."

Well; let us consider Mr. Krüger's interpretation of the duties of the police.

2.—*The Police.*

The chief of the departments of justice and police is called the State Attorney.

In 1895, when Mr. Esselen was promoted to the post, he stipulated that he should have full liberty of action. As chief detective officer he appointed an officer belonging to the Cape Administration, Mr. Andrew Trimble, who entered upon his duties with vigour and determination. The gold thieves and receivers and the illicit canteen keepers who supplied the natives with liquor were up in arms at once and appealed to President Krüger. They represented Trimble as having served in the English Army, and as being in receipt of a pension from the Cape Government, further stating that his appointment was an insult to the Boers, who had been thus judged unworthy to provide from among themselves a Head of Police. Mr. Esselen, who stood his ground, was dismissed and replaced by a Hollander, Dr. Coster. Mr. Trimble, chief of the detective force, was replaced by a man who had previously been dismissed, and has since been dismissed again.

As it was useless to depend upon the police for the arrest of thieves, the directors and officials of the *City and Suburban Gold Mining Company* took upon themselves the risks and dangers of police work. They caught two notorious characters, known thieves, with gold in their possession. The thieves openly boasted that nothing would be done to them; the next day, one was allowed to escape, the other, a notorious criminal, was condemned to six months' imprisonment. Mr. Krüger regarded this penalty as excessive, remitted three-fourths of the sentence, and had him discharged unconditionally.

The police of Johannesburg, a town almost entirely inhabited by English, do not speak English—an excellent method of ensuring order! They are chosen from among the worst types of Boers, some of whom are the descendants of English deserters and Kaffir women; whence comes the fact that some bear English names. The policeman Jones, who killed Edgar, is a case in point.

The murder of Edgar was a small matter in the same way as the Dreyfus case was a small matter; only when a case of this nature arises, it reveals a condition of things so grave that it excites widespread feeling at once.

Edgar was an English workman, a boilermaker, who had been a long time in Johannesburg; a well-conducted man and generally respected. He was going home, one Sunday night in 1898, when three drunken men insulted and set upon him. He knocked one of them down. The other two called the police.

Edgar, meanwhile, entered his own house. Four policemen broke open his door, and the instant Edgar came out into the passage, Policeman Jones shot him dead with a revolver. "A mere police row," says Dr. Kuyper.

Jones was arrested next morning, but straightway released upon a bail of £200. The money was not even paid in, but carried over to be deducted monthly from the future salaries of other members of the Johannesburg police force.

Feeling was strong among the other English workmen, many of whom knew Edgar; and this feeling was intensified by the subsequent parody of justice.

3.—*An Ingenious Collusion.*

The State Attorney, Mr. Smuts, informed the Acting British Agent, Mr. Fraser, that it would be better to bring a charge against Policeman Jones, for "culpable homicide" than for murder, but that he considered the chance of his conviction by a Boer jury to be very small. The word "culpable," says Webster (English Dictionary) is "applied to acts which have not the gravity of crime." In this instance, it made Jones' action excusable on the grounds that Edgar struck him with a stick, at the moment of his entering the house.

A journalist, Mr. J.S. Dunn, Editor of *The Critic*, commented upon the action of Dr. Krause, the First Public Prosecutor. Dr. Krause took criminal action against Mr. Dunn for libel, and, before proceeding with the murder trial, appeared as witness in his own case, and swore that he did not consider that Jones had been guilty of murder; he not only made this statement on oath, but called the Second Public Prosecutor who gave similar evidence. Nor was this all. He brought forward the accused himself, as witness to state that the First Public Prosecutor was right in not committing him for murder!

When this ghastly farce had been performed, which is much on a footing with the examination of Esterhazy by Pellieux, the murderer was free to present himself confidently before a Boer jury. Not only was he acquitted, but the presiding judge, Kock, who had claimed a judgeship as a "son of the soil," in pronouncing judgment added this little speech: "I hope that this

verdict will show the police how to do their duty." This amiable conclusion did not seem very re-assuring to the Uitlanders.

At the same time Mr. Krüger suppressed two newspapers, *The Critic* and *The Star*. (See Blue Book C. 9, 345.)

4.—*The Lombaard Case.*

Dr. Kuyper states that Edgar was in the wrong, that Jones acted within his rights, that the Public Prosecutor and the jury fulfilled their duty. As for Lombaard, "he too," Dr. Kuyper tells us, "was a Johannesburg policeman, and like Jones a little rough in his mode of action".... "He committed no outrage; the sole reproach attaching to him was that he conducted his search at night, and without a special warrant." And Dr. Kuyper is very contemptuous of any who may be disposed to question such proceedings.

The truth is, that Lombaard, at the head of sixteen or eighteen police, had taken upon himself, without warrant, to enter the houses of coloured British subjects, men and women, to demand their passes; to send them to prison whether right or wrong; to ill-treat and flog them. A mere trifle; scarce worth talking about; they were only people of colour, and Dr. Kuyper has told us his ideas on that subject.

The Edgar case was the origin of the petition of the 21,000 Uitlanders to the English Government, to ask the protection it had undertaken to extend to them under the Convention of 1884.

The facts which I have given in *Le Siècle* of the 29th March, and those I now give here, are sufficient to prove that under Mr. Krüger's Government, police, justice and law do not exist in the Transvaal.

CHAPTER VII.

SECURITY OF INDIVIDUALS ACCORDING TO BOER IDEAS. [\[11\]](#)

1.—*The Amphitheatre Case.*

Dr. Kuyper proceeds with charming serenity:

"The affair called the 'Amphitheatre Case' is more ridiculous still."

And this is his mode of telling it:—

"One day the *South African League* wished to hold a meeting in the Amphitheatre, and, through Mr. Wybergh, intimated to the State Attorney that they preferred not to be hampered by the presence of the police. In conformity with this wish, the State Attorney telegraphed to the Johannesburg police to keep away. But scarcely had the meeting commenced before the opponents of the League invaded the hall; and the few police stationed at the door were unable to separate the combatants quickly enough. There followed complaints to London ..."

This is Dr. Kuyper's account. I would ask him, in the first place, why he does not give the date of this meeting, which took place on the 14th of January, 1899, one month after the death of Edgar. Secondly, what was the object of this meeting? Dr. Kuyper is silent on these points. He speaks of the step taken by Mr. Wybergh, but he altogether misrepresents it, forgetting that Mr. Wybergh has given his own account of it.

In the serious condition of affairs in Johannesburg at that time, he went to the State Attorney and the Secretary of State, to acquaint them with his intention to hold a meeting in a large building, called the Amphitheatre, generally used as a circus. He informed them that the meeting was convened for three objects: 1. To protest against the arrest of Messrs. T.R.

Dodd and C.D. Webb; 2. To protest against the law of public meetings; 3. To obtain signatures to a petition praying for the protection of Queen Victoria.

The State Attorney and Secretary of State replied that "although the objects of this meeting were naturally distasteful to the Transvaal Government, they did not forbid the meeting. Only, all persons who should commit acts of violence, or who should make use of seditious language, would be held personally responsible."

Ladies were invited to attend the meeting, which was held at four o'clock in the afternoon. The members of the League were unarmed.

When they arrived, they found the hall already in possession of three or four hundred burghers, who had been recruited by Papenfus, Acting Road Inspector, and were acting under the orders of Mr. Broeksma, Third Public Prosecutor, and Mr. de Villiers, Second Public Prosecutor. These men were placed in groups about the Amphitheatre. No sooner had the meeting begun, than, on a signal given by Mr. Broeksma, chairs were broken, and, under the orders of Sergeant Smith, of the municipal police, of Erasmus, of the special police, Lieutenants Murphy and Keller of the secret police, and, with the assistance of policemen in uniform, they commenced an assault upon the members. Lieutenant Posthuysen, on horseback in the arena, encouraged the rioters.

Nothing could show Dr. Kuyper's manner of stating and interpreting facts better than the following sentence:—

"It was simply a matter of the careful protection of British subjects, or rather of the worthy apostles of Johannesburg, who had begun by saying to the magistrates of the Transvaal 'keep away your police!' and who, later, crawling back from this meeting, after being well thrashed, complained bitterly that the police had not protected them."

Dr. Kuyper seems to think it highly amusing that the "worthy apostles of Johannesburg had been well thrashed."

When we find a European Dutchman, a man of letters, showing such animus in the examination of facts, one may judge of what the Boers are

capable, ignorant and rough as they are, and inflated with the conviction that they are the elect people.

2.—*Different modes of estimating bail.*

We have seen that one of the objects of the meeting had been to protest against the arrests of Messrs. Dodd and Webb. These two gentlemen had been arrested as the organisers of an illegal meeting in the public market square, a public place, where no speeches had been made, but where the petition to the Queen had been openly read, before they had taken it to the British Vice-Consul. To obtain their release they had each to find sureties of £1,000, while Jones, Edgar's murderer, had been set at liberty on bail being found for £200 unpaid.

3.—*The Uitlanders' Petition.*

These proceedings only resulted in more signatures to the petition addressed to the Queen. When Sir Alfred Milner, March 28th, 1899, forwarded a copy to Mr. Chamberlain it contained 21,684 signatures. Sir Alfred Milner did not undertake to guarantee the authenticity of them all, but gave reasons for considering the greater number as *bonâ fide*.

Mr. Wybergh in a letter of April 10th, to the British Vice-Consul, explains the measures that had been taken to collect and verify the signatures. They were such as to inspire confidence. He states that among the whole number, only 700 are of illiterate or coloured people; and adds, that after the dispatch of the petition 1,300 other signatures were sent in, thus raising the total to 23,000.

The Government of Pretoria, after a lapse of more than a month succeeded in raising a counter-petition addressed to itself, which, at first, it stated, contained 9,000 signatures; some time later, on the 30th of May, the British Government was informed that it numbered 23,000 signatures. Krüger wished to prove that he had at least the same number of partisans.

Only he had out-witted himself in the drawing up of this counter-petition. His signatories affirmed that security of property and individuals was

assured in the Transvaal. Pangloss, himself, would not have gone so far.

4.—*Security of the Individual according to Boer ideas.*

Krüger's petitioners further asserted that the petition to the Queen was "the work of capitalists and not of the public." As a matter of fact, incensed at the murder of Edgar—a working man—the men who were the first to sign that petition were working men. The principal mining company of Johannesburg had shown an example of that prudence we see too often among capitalists, and had dismissed Mr. Wybergh, the President of the *South African League*, who was one of their employés. The President of the Chamber of Mines, Mr. Rouliot, in his statement of January 26th, 1899, took pains to dissociate it from the campaign of agitation. This display of weakness availed nothing. The Government of Pretoria took up the attitude that has succeeded so well in deceiving public opinion: that of a council composed of honest men, innocent victims of capitalist rapacity.

5.—*The Murder of Mrs. Appelbe.*

Here is a proof of the security enjoyed by the Uitlanders, at the very time when the Government of Pretoria closed its list of signatures to the counter-petition. On Friday April 28th, Mrs. Appelbe, the wife of a Wesleyan minister of Johannesburg, was going to chapel accompanied by a Mr. Wilson, a chemist. They were set upon by a band of men in the pay, it is said, of canteen keepers, sellers of liquor to the natives. Mrs. Appelbe received such severe injuries that she died on the Thursday following. Mr. Wilson, who was badly wounded in the head, eventually recovered. On May 8th, the police affected to know nothing of the outrage; nor did they ever discover the murderers of Mrs. Appelbe, thus proving the grand irony of the apologist petition which "emphatically" affirmed the complete security of life and property in the Transvaal.

CHAPTER VIII.

BOER OLIGARCHY.

Dr. Kuyper, who has juggled with these facts, enumerates with a sort of amazed frankness the reproaches addressed to the Transvaal Government:

The relations between legislative and judicial authority give rise to comments which cannot be considered groundless.... It has been called scandalous that the Chief Justice of the High Court should have been deposed. But, in 1839, President Johnson, of the United States, met the difficulty by making a majority of nine in the High Court, thus assuring to himself a compliant majority.

There is a mis-print in the Article in the *Revue de Deux Mondes*. The date should be 1869 not 1839; and truly Dr. Kuyper has lighted upon a good example in his selection of President Johnson; the only President of the United States who has been impeached!

I know that sort of argument generally employed by people who are in the wrong and especially employed by people whom Dr. Kuyper can scarcely bring forward as models. "All very well, but what of that little slip of yours." ... Dr. Kuyper might as reasonably invoke *la loi de dessaisissement* voted by the French Chamber last year. Our answer to him is that the violation of the most elementary principles of justice in one country, does not justify it in another. He proceeds:

"The Boer Government is said to be an oligarchy. And yet every citizen has his vote—Throughout the land there are juries...."

Really Dr. Kuyper affects too great *naïveté*. The Boers may have created a democracy among themselves; with regard to natives and Uitlanders they are an oligarchy.

"Every citizen has his vote": But Mr. Krüger's argument for refusing the franchise to Uitlanders is that they numbered 70,000, while the Burghers were only 30,000. Here we have a minority governing the majority; what else is an oligarchy?

"Throughout the land there are juries"; yes, but juries made up of Boers who try Uitlanders, treat them as enemies, and find that the policeman Jones acted rightly in killing Edgar. That way of constituting a jury is a certainty of injustice to the Uitlanders, and not a guarantee of justice.

President Krüger promised to do something for the municipal organisation of Johannesburg; this is how he keeps his promise. Each division of that town elects two members, a Burgher and an Uitlander; according to the last census, the burghers living in Johannesburg, numbered 1,039; the Uitlanders 23,503; thus 1,039 burghers had as many representatives in the municipal Corporation as the 23,503 Uitlanders. The Mayor, who was nominated by the Government, had the right of absolute veto.

In modern law there exists a principle introduced by England, which is the true basis of representative Government: "no representation, no taxation." It is the right of every citizen who contributes to the taxes to approve of them and to control the use of them.

In autocratic governments, he has no such right. In oligarchic governments, the governing class imposes burdens upon those it governs. This is the case in the Transvaal.

In an oligarchy, taxes are not levied with a view to the general good of the community, but for the benefit of the ruling class; and this is the political conception of the Boers.

Dr. Kuyper says, in speaking of the Uitlanders:

"No one invited them here; they came of their own accord."

Therefore they possess the right to be taxed, but nothing else.

Dr. Kuyper's assertion is not strictly correct; for he forgets the invitation addressed by Mr. Krüger, in London in 1884, to all who were willing to

take their abilities and their capital to the Transvaal, in which he promised them rights of citizenship and assured them of his protection.

But the matter of invitation is of little account. Let us allow that there was no invitation. Neither did Fra Diavolo invite the travellers he despoiled; *ergo.*, according to Dr. Kuyper, he had the right to despoil them. The Uitlanders are travellers, at whose expense the government of Pretoria has the right to live, and to support the Boers.

Such is plainly the idea of Mr. Krüger and of the majority of the 29 members of the Volksraad, and we shall see that that idea underlies the whole of its political economy.

Mr. Krüger was, however, in error in supposing that he could practise this system indefinitely in these times of ours, and with respect to the citizens of a country which represents the modern conception of industrial civilization.

Professor Bryce, a strong opponent of the present policy of England, says in his *Impressions of South Africa* (p. 470):

"A country must after all take its character from the large majority of its inhabitants, especially when those who form that majority are the wealthiest, most educated, and most enterprising part of the population."

Mr. Krüger has aimed at realizing this paradox: the oppression and plunder of the most enterprising, most educated, the richest and most numerous portion of the population by the poorest, most ignorant, most indolent of minorities.

CHAPTER IX.

THE TRUTH ABOUT THE GOLD MINES.[\[12\]](#)

1.—*That Gold is Mine!*

Let us see in what terms Dr. Kuyper justifies the Boer policy of exaction:

"The Leonards and their set are very ready to tell us that the taxes in Johannesburg exceed in proportion those levied in every other country.... As to the quota paid by Uitlanders to the State, we beg leave to remind the British of two points: first, that they are exempt from all military service; secondly, that it is a far more serious matter for the Boers to pay with their lives, and the lives of their sons, than it is for these wealthy owners of gold mines to pay so much per cent. upon their enormous dividends; and that if they do pay the Transvaal some thousands of pounds, they pocket their millions. Moreover, love for the Transvaal has never entered their metallised hearts."

This little gem merits careful analysis. Mr. Kuyper shares the belief that one has only to go to Johannesburg to shovel in the gold. If the working of mines were so simple a matter, Boer intelligence would be equal to the undertaking. As they are not worked by them, it must be because there are difficulties. These difficulties have been overcome for them by the Uitlanders. Once overcome, the Boers present themselves and say: "That gold is mine!"

"Why then did you not take it yourselves?"

The Boers, who pride themselves upon driving their teams of oxen, but who consider that to in-span them is work only fit for Kaffirs, consider gold mining beneath them, let alone that they have not the capacity for it. They leave it to the Uitlanders: all the same, Dr. Kuyper holds it just that it is they who should take the profit.

2.—*The Proportion of Gold per Ton.*

Gold ore is found in infinitesimal quantities in large deposits of waste matter. In 1898 of the 77 Gold Mining Companies at work, three-fourths reported a yield of 1/2 oz. per ton; some only 6 to 7 dwts. per ton. Consequently we find mines worked where one ton of rock will yield 1/2 oz. of ore, or perhaps only half as much. There are other mines which swallow up the capital, and give no return at all.

3.—*Cost of Production.*

In 1892 gold producing in the Transvaal cost 35s. 6d. per ton; in 1897 the cost was reduced to 28s. 6d.; in 1898 to 27s. 6d. This reduction of cost is in no way due to any reforms made by the Government, but to improvements in the methods employed, and especially to the more extensive use of compressed air drills.

Out of 8,965,960 tons of ore raised in the Witwatersrand nearly 18.2 per cent. had to be thrown out; that is: about 1,634,500 tons of ore were rejected as sterile. In some cases the proportion of sterile ore has amounted to as much as 40 per cent. The cost of production from the deep levels is 34s. 6d. Out of the profits of each month, expenses and the cost of working material have to be met. (Speech of Mr. Rouliot, President of *The Chamber of Mines*, January 26th, 1899.)^[13]

Mr. J.H. Curle in his valuable work *The Gold Mines of the World*, published in 1899, estimated the debts of the Rand Companies at £5,515,000. "It is not unusual," he writes, "for the directors of a deep level mine to spend £500,000 before one single ton has been crushed."

4.—*A Gold Mine is an Industrial Undertaking.*

According to the report of the Industrial Commission appointed to inquire into the mining industry, there were, in 1896, 183 gold mines in the Transvaal. Of these 79 had been gold-producing, while 104, still in process of development, had as yet produced nothing. Of the 183 only 25 had paid dividends.

In 1898, a year of great progress, of the 156 mines situated in the Rand, 40 only were paying dividends, representing, on an average, a return of 8.7 per cent.

In reality, a gold mine is as entirely an industrial undertaking, as is any other form of commerce; for its proper development it requires men of the highest capacity, not a mere set of adventurers, as Dr. Kuyper and other Pro-Boers tell the simpletons who judge without examining facts. This is what is said on the subject by Mr. Curle, who saw the mines at work during his extended and conscientious enquiry:

"The average mine manager, whether in South Africa, or India, or Australia, or wherever I have met him, is an extremely capable man. Of course, there are exceptions—some managers are not capable; some are not even honest, but, as a rule, those in actual charge of our gold mines to-day are men who can be relied on, but I do not wish to confine my praise to the managers only. The mine captain, whose valuable qualities are known more to the manager than to outsiders, is usually a most capable man, and devoted to his work. Many and many a time, after his hard day's work should have been over, has a mine captain cheerfully started off with me on a three or four hours inspection of his workings, only too delighted to oblige, and asking merely that his visitor should show an intelligent interest in what he saw. To these men, and to the other heads of departments, to battery managers, cyanide works managers, assayers, samplers, surveyors, office staff; the shareholders in every mine owe a debt which they do not realise and which is often inadequately acknowledged. Amongst these men—I could give hundreds of examples—there is the greatest sense of duty to their employers, and from one year's end to another, by day and night, in the bush, on mountain tops, in fever swamps, in wild and deep places all over the world, they faithfully carry through their arduous work."

Such is the type of Uitlander the gold mines have attracted; add to them, mechanics and the most highly skilled artisans: for it is to the interest of the mines which pay high salaries to employ the most skilled labour.

A population such as this, has nothing in common with the adventurers who rushed to the placers of California, or with the fancy picture of the "wealthy metal-hearted mine owners," presented to us by Dr. Kuyper.

5.—*Distribution of the Gold Production.*

Dr. Kuyper speaks of "the vultures" who come to rob the country of its gold; we would point out to him that before gold can be extracted from the rock, a vast amount must be sunk in it. We have just seen that the cost of production often exceeds the profits.

Dr. Kuyper, in his childish innocence, imagines that "the vultures" carry off the gold as soon as it is extracted.

Had he taken the trouble to ascertain the facts, he would have seen that the greater part of this gold remains in the Transvaal, and either goes to the Government, or to defray the cost of production.

I borrow the following figures from the supplement to *The Critic* of July 8th, 1899.

Let us take the last five years:—

	Gross Profits.	Dividend to Shareholders.	Paid to Boer Government.
1894	£7,930,481	£1,595,963	£2,247,728
1895	8,768,942	2,329,941	2,923,648
1896	8,742,811	1,918,631	3,912,095
1897	11,514,016	2,923,574	3,956,402
1898	15,942,573	4,999,489	3,329,958
	£52,898,823	£13,767,598	£16,370,387

Thus upon £52,898,823 worth of gold produced between the years 1894 and 1898 only 25 per cent. of this amount went to the shareholders, 30 per cent. was paid to the Transvaal Government, while the cost of production absorbed 45 per cent. The two last figures show that about 75 per cent., that is to say, three-quarters of the entire production remained in the Transvaal;

and we have only taken the average of the last few years, during which the cost of production has been reduced to a minimum, thanks to the perfecting of the methods of working.

Let us add that while according to the above table in 1898 the estimate of the revenue was £3,329,000, the expenditure rose to £3,476,000. In 1899, the estimate of the revenue was £4,087,000.

From 1894-97 the amount paid directly into the Transvaal Exchequer had exceeded the shareholders' dividends; and when the reverse happened in 1898, the Government of Pretoria determined to put that matter right.

6.—*Cost of Production and the Transvaal.*

Dr. Kuyper also complained that the entire cost of production was not absorbed by the Transvaal. In his statement of January 26th 1899, Mr. Rouliot proved that the greater portion was in point of fact expended there. He gave the following figures concerning the expenditure of fifty-six companies in 1898.

The mines had only imported direct to the amount of £369,000, paid for machinery, which could only be constructed in Europe, and for Cyanide, to avoid having to buy the latter from a local trust, which raised the price 100 per cent.

Through local firms they had imported machinery and certain products to the amount of £324,438. From local merchants they had bought machinery, &c., to the amount of £2,487,660. They had paid £767,600 to the Dynamite Monopoly. They had distributed £3,329,000 in salaries to their employés, native or European. If we take it that the expenditure of the sixty other Mining Companies, gold or coal, in the vicinity of Johannesburg, was similar to the above, we have a total of something like nine million pounds sterling put in circulation, *plus* purchases of dynamite, *plus* merchandise bought through the medium of local tradespeople. Thus we see that the bulk of the cost of production actually remained in the Transvaal.

7.—*What the "Vultures" brought.*

Before Dr. Kuyper's "vultures" came to despoil it, the Transvaal was in a very shaky condition. It was heavily in debt and the Exchequer was empty; the Boer having always had a horror of paying his taxes. In 1884 when Messrs. Krüger and Smits came to London to sign the famous Convention, and stayed at the Albemarle Hotel, they found themselves, after the first few weeks unable to pay their bill, and Baron Grant had to come to their assistance. Now the "vultures" have been pouring some millions annually into the coffers of the Transvaal; a certain proportion of which has stuck to the fingers of Mr. Krüger, his family and intimates. The "vultures" have brought riches, industry, and civilisation into a wild and uncivilised country. The simile of the bird of prey is more applicable to the Boer than to the Uitlander.

CHAPTER X.

FINANCIAL POLICY OF THE BOERS^[14]

1.—*Receipt of the Boer Exchequer.*

Like every true aristocrat, the Boer has always had a horror of paying taxes; he only approves of taxes paid by others.

At the time of the annexation of the Transvaal by England in 1877, the Government was being crushed by debt, the burghers resolutely refusing to pay their taxes.

Some order was brought into the finances by England; but the Boer revolt in December, 1880, was caused by the determination of Colonel Owen Lanyon, the English Resident, to seize the bullocks and wagons of recalcitrant tax-payers.

The Transvaal Government obtained the Convention of 1881. In 1883, the budget showed £143,000 revenue, and £184,000 expenditure. From April 1st, 1884, to March 31st, 1885, the revenue rose to £161,000, the expenditure remained at £184,000.

In 1886, the gold mines were discovered, and in 1889, the revenue rose to £1,577,000. The crisis of 1890 caused it to drop below the million; in 1892 it rose again, reaching in:—

1894	£2,247,728
1895	2,923,648
1896	3,912,095
1897	3,956,402
1898	3,329,958

In 1899, it was estimated at £4,087,000. These figures do not include the sale of explosives from 1895 to 1898; the share of licences of claims from

1895 to 1899; nor the Delagoa Bay customs dues paid to the Netherlands Railway for 1898 and 1899.

2.—*Budget Assessment of the Burghers.*

According to the *Staats Almanak*, the white population numbers 300,000, of whom 175,000 are males. The number of burghers aged between sixteen and sixty, entitled to vote, is 29,447; that of Uitlanders, between the same ages, 81,000.

These 30,000 Boers who represent the electoral portion of the community, do not pay one-tenth of the revenue of the state. They represent, however, a budget of over four millions of pounds; or, £133 per head. If our 10,800,000 electors in France had a proportionate budget at their disposal, it would amount annually to £1,436,400,000; or considerably more than our whole National Debt.

The burghers are thus fund-holders in receipt, per head, of a yearly income of £133 from the Uitlanders. Never has there been an oligarchy so favoured. It is true that all do not profit in the same proportion. "The Transvaal Republic" says a Dutchman, Mr. C. Hutten, "is administered in the interests of a clique of some three dozen families."^[15]

3.—*Salaries of Boer Officials.*

The salaries of the Transvaal officials amounted, in 1886, to £51,831; in 1898, to £1,080,382; and in 1899, they were estimated at £1,216,394. Salaries amounting to £1,216,394 for 30,000 electors! Such are the figures of the Transvaal Budget.

Here we find undoubtedly a great superiority over other countries; and the officials in receipt of such salaries would look down with profoundest contempt on the much more modest pay of their European colleagues if they knew anything about them. Each elector represents more than £40 of official salaries. At the same rate the pay of the French Government officials would amount annually to about four hundred and thirty-two millions pounds sterling (£432,000,000)! This is not all. In 1897, a member

of the Volksraad asked what had become of some £2,400,000 which had been paid over to Transvaal officials, in the form of advances of salary. He received no reply.

4.—*The Debit Side of the Boer Budget.*

In a pamphlet, by M. Edouard Naville, *La Question du Transvaal*, and also in the *Revue Sud-Africaine* of October 22nd, 1899, we find a list showing the expenditure of the Pretoria Government, from which may be gathered the extraordinarily rapid rate of increase: In the fourteen years—1886-99—the budget expenditure amounted to £37,031,000, of which nine-tenths have been defrayed by the gold industry. From information supplied by the Government of Pretoria itself, we find that five sources have absorbed more than half:—

Salaries, &c.	£7,003,898
Military expenditure	2,236,942
Special expenditure	2,287,559
Sundry services	1,581,042
Public works	5,809,996
	£18,919,437

Leaving a surplus of £18,111,601

Under the headings of "special," and "sundry services," are concealed the secret service expenditure, remuneration to influential electors, and the various political expedients by which Mr. Krüger has proved "his intellectual and moral" superiority.

The official salaries of 1899, estimated at £1,216,000, included a sum of £326,640 for the police. We have seen what kind of police it is.

The legislature is composed of two Volksraads, each consisting of twenty-nine members; or fifty-eight in all. Now the estimate of salaries for the legislature is £43,960, or about £758 each, more than double the allowances of the French senators and deputies.

It is somewhat imprudent of Dr. Kuyper to refer to the educational expenditure. The expenditure amount allocated for the education of the children of Uitlanders in 1896, was £650, or at the rate 1s. 10d. per head, while the gross estimate for education in the budget for that year amounted to £63,000, which works thus out at a cost of £8 6s. 1d. per head for the Boer children. Dr. Mansveldt, Head of the Education Department of the Transvaal, a Hollander, seems to have but one aim: to enforce the use of the *taal*, the Boer patois—a language spoken by no one else—the use of which keeps them in isolated ignorance. The English language is banned.

5.—*New Taxes.*

This revenue, employed almost exclusively for the benefit of the Boers, did not suffice for the insatiable government in Pretoria. At a meeting of the Chamber of Mines, on November 21st, 1898, Mr. Rouliot summarized a statement by Mr. Krüger in the Raad, as follows:—

"But recently, Mr. Krüger had said he would give the mines the chance of establishing themselves before a percentage should be imposed upon their returns; and that no tax would be levied till the diggings had been completed, and the machinery set up. It appeared to him, however, that the government intended to appropriate some of their profits, although it had given no facilities for the preparatory works on the mines, during which it should be remembered that their capital had been burdened by exceptionally heavy indirect taxation. The moment that capital began to be productive, it was to be taxed." (*Blue Book*, No. 9345, p. 48.)

In four-and-twenty hours, Mr. Krüger had unexpectedly managed to pass a law levying a new tax of 2-1/2 per cent. of the gross production from mynpachts (mining leases), and 5 per cent. from the gross production of other mines. In his report of January 26th, 1899, Mr. Rouliot says: "Had this new tax formed part of a general scheme for the readjustment of taxation, it might have been defended, but those who are considered best qualified to express the views of the government, content themselves by saying that it

has the right to take a share of the profits realised by the mines and add that this tax is only a beginning."

6.—*Attempt to Raise a Loan.*

Not content with increasing taxation, the government now wished to raise a loan. The attempt failed. The Government of Pretoria blamed the mining companies for the failure. Mr. Rouliot said, on January 26th: "It is true that the companies did not actually support the government in its efforts;" but he added:—

"Neither the Chamber of Mines, nor, to my knowledge, anyone directly, or indirectly, connected with mining interests did anything to embarrass the government in its financial negotiations. It is useless to abstain from plain speaking; on the contrary, I hold it to be my duty to be frank and to state to the government that if it failed in its negotiations, it is due to its bad financial policy; to its want of an efficient system of audit; to its costly and terribly wasteful administration; to the want of precise information as to the object of the loan, and the manner in which it was to be expended."

In fine, Law I. of 1897, and the fantastic method of legislation adopted by the Volksraad, show that the Government of Pretoria offers no better guarantee to people dealing with it than did the Grand Turk, some fifty years ago.

7.—*Fleecing the Uitlanders!*

Taxation, to the Boer, means getting all he can out of the Uitlander, the old characteristic of all oligarchies. The Boer may cheerfully augment both the taxes and his expenditure. It is not he who will suffer.

I admire the Frenchmen, Belgians, Swiss, &c., who pretend that the Uitlanders are a bad lot for not being delighted with such a government.

CHAPTER XI.

MONOPOLIES IN THE TRANSVAAL AND THE NETHERLANDS RAILWAY COMPANY. [\[16\]](#)

1.—*Article XIV. and the Monopolies.*

The avowed taxes are far from representing the whole of the burden laid upon the Uitlanders by the Government of Pretoria.

The Convention of 1881 guaranteed freedom of commerce; nevertheless, from 1882 onwards "the triumvirate who ruled the country," says Mr. FitzPatrick (*The Transvaal from Within*), "granted numbers of concessions, ostensibly for the purpose of opening up industries. The real reasons are generally considered to have been personal." In 1884, Article XIV. renewed the guarantee of freedom of commerce; the Volksraad itself one day passed a resolution condemning monopolies in principle: and in December 1895 the President granted a monopoly for the importation of products, under the guise of a government agency with a commission to the agent!

One of the first monopolies established was for the manufacture of spirits. The quality of liquor it supplies to the natives is atrocious. To drunkenness is attributed a loss of 15 per cent. on the labour of 90,000 natives whose pay and food are equivalent to £40 per head, a loss therefore of £550,000 a year.

2.—*The Dynamite Monopoly.*

Two despatches, one from Mr. Chamberlain, dated January 13th, 1899, and the other from the Transvaal Government, dated March 9th, 1899, indicate how Mr. Krüger always meant to interpret Article XIV. of the Convention of 1884:

On October 13th, 1893, the Transvaal Government granted a monopoly of the dynamite trade to Mr. L.G. Vorstman for a period of 15 years. The price

of No. 1 dynamite was fixed at £4 15s. per case, of which 5s. was to be paid to the Government.

The Transvaal Government maintains that this monopoly does not violate the freedom of labour, as it was established in the interest of the State, not in that of the concessionaires, and that the manufacture of dynamite is forbidden to the Boers as much as it is to foreigners.

Mr. Chamberlain in his despatch denies that the dynamite monopoly has been established in the interest of the State; and points out that even according to General Joubert, Vice-President of the Republic, this is really not a State monopoly but the monopoly of one, Lippert, because it is he who has derived the greatest profits from it.

The monopoly company has always failed to fulfil its engagements; the installation was to be completed in two-and-a-half years: in October, 1896, the company was only able to produce 80,000 cases, the consumption at that time amounting to 200,000. The commission of the Volksraad estimated that between 1897 and 1899 it would be necessary to import 430,000 cases in addition to the quantity produced by the company. It is more to the company's interest to import than to manufacture, since importation affords a profit of £2 per case, and to the State a duty of 5s. Were dynamite imported by the State itself, the latter would realise about £860,000 instead of, as at present, £107,500, making a difference of at least about £752,500.

The price at which dynamite is sold is from 40s. to 45s. above its real value, from which excessive charge only certain individuals, living for the greater part in Europe, derive the benefit. This fact is attested, not by the English, but by Mr. Philipp, State Director of the Manufacture of Explosives. The Commission demanded that all dynamite should be manufactured by the State, and imposed a duty of 20s. per case on all imported dynamite.

These resolutions were passed by the Volksraad Commission in 1897; the monopoly has continued to exist, and in 1899 it was proposed to prolong it for a period of fifteen years. On May 1st, 1898, it is true, the price was reduced by 10s.; the company giving up 5s., and the State renouncing the whole of the 5s. duty. It had therefore no interest in maintaining the

monopoly; 2s. of the net profits were still payable to it, it is true; but there are no public accounts.

By way of compensation new taxes were imposed by the Government. Mr. Rouliot, President of the Chamber of Mines, in his speech, January 26th, 1899, put it thus:—

"It is a burden borne by us on another shoulder, not a lightening of the burden."

Allowing for the increased consumption of dynamite, it has been estimated that, even with a further reduction of 5s. per case, the annual burden imposed upon the industry by the monopoly would, at the end of the period, amount to from £687,500 to £825,000. The Transvaal Government in its reply of March 9th, 1899, did not dispute these figures, but stated simply that, "the government had the right to judge what was most advantageous to itself."

The complaints of the British Government on behalf of the mining industry of the Transvaal, were founded solely upon the statement of the Volksraad Commission itself. This mania of the Government for a monopoly by which the shareholders profit greatly and the State hardly at all, proves that there are other interests at stake than those of the public.

At its meeting on February 3rd, 1899, the Witwatersrand Chamber of Mines decided to guarantee a Government loan of £600,000 at 5 per cent., to be applied in buying-out the concessionaires of the dynamite monopoly.

3.—*Railways.*

A concession for all the State railways was granted on April 16th, 1884, to a group of Hollander and German capitalists, and confirmed by the Volksraad on August 23rd following. In 1887 the shares, to the number of 2,000, representing a capital of £166,666, were held as follows:—

By Germans	819	shares	carrying	30	votes.
" Hollanders	581	"	"	76	"
" The Republic	600	"	"	6	"

This astonishing division of votes which gave to the Transvaal Government 6 out of 112, although it subscribed one-third of the capital, and assured to the Hollanders twice as many votes as the other holders put together, although they only provided one-third of the capital, was the work of Dr. Leyds. The contract for the construction of the first 70 miles is not less surprising. Messrs. Van Hattum & Co. were to build the line, at a cost mutually to be agreed upon by them and the railway company; and they were to receive as remuneration 11 per cent. upon the amount of the specification. The 11 per cent. was to be proportionately decreased by a sliding scale so arranged that it disappeared by the time Van Hattum & Co. had exceeded the contract price by 100 per cent. Beyond that the company had the right to cancel the contract. From this it follows, that, by deciding to lose the 11 per cent., Messrs. Van Hattum could make a gain of 89 per cent. This they did, and whole sections of earthworks, which should not have cost £8,000 per mile, cost £23,000 instead. A thousand Hollanders were brought out to work on the line; and sent home again at the expense of the Government. In a country which abounded in stone, the Komati Bridge was built of dressed stone imported from Holland, with the cost of a transit of 7,000 miles.

4.—*The Drift Question.*

The Cape Colony Free State Railway ends at the Vaal River, 50 miles from Johannesburg. Thence goods are transmitted by the Netherlands Railway at a charge of 8-1/2d. per ton per mile, the rate being 3d. over the rest of the line.

In order to escape this rate manufacturers resorted to the use of ox-wagons; Mr. Krüger forbade them the drifts in order to compel the transit of goods by railway. This was another flagrant violation of Article 14 of the Convention of 1884, which called forth the intervention of Mr. Chamberlain. The indignation at the Cape was so great, that Mr. Chamberlain having asked the Cape Government, whether, in the event of war resulting, it would pay half the cost, and undertake the transport of the troops by the railways, the proposal was accepted by an Afrikaner minister! Mr. Krüger yielded and re-opened the drifts.

5.—*Methods of Exaction.*

A reduction of £100,000 was made on the railway tariffs; but in July, 1897, the duties on corn and food-stuffs were increased by £200,000. At the end of 1898, a certain number of these were lessened, but not that on flour. A comparison of the list of duties between 1897 and the end of 1898 shows that they were increased on twenty-eight products, and decreased on four.

Coal travelling a distance of 25-1/2 miles, the charge made by the Netherlands Railway Co. is 4s. 5d., which is 8-1/2d. per ton per mile; while the Free State Railway only charges 5-3/4d. and the Natal line 3d.

The Company collects the customs dues for account of the State, as security for the payment of interest on their shares and debentures.

Dr. Kuyper is quite willing to admit that the "financial administration leaves something to be desired," but he adds that, "while at the Cape the taxes on produce are at the rate of 15 per cent., in the Transvaal they are only 10 per cent." But it is easy to see how, by means of railway tariffs and various combinations, due to the cunning of Mr. Krüger and his Hollander friends, it has been possible to enhance prices of every description.

CHAPTER XII.

"CAPITALIST INTRIGUES" AND THE WAR.^[17]

1.—*A War of Capitalists.*

"It is a war of capitalists against a set of poor Boers who have no sort of interest in the dispute!" Such is the general cry.

Let us look at the facts.

The other day, anent the attempt upon the Prince of Wales, I referred to the anarchist and socialistic attacks of certain Pro-Boer and Anglophobe journals on capitalists, financiers, and the wealthy "metal-hearted mine-owners," as Dr. Kuyper calls them. I reminded my readers that Professor Bryce himself treats as absurd the tale that the aim of the Jameson Raid, as stated by those papers, was the conquest of the Transvaal for Rhodesia. I shall now show by documentary evidence that the war did not break out through any action on the part of gold-mine proprietors. In the first place, the greater number of these proprietors reside in Europe; and as much in France, Germany and Belgium, as in England. Their representatives in the Transvaal may hold more or less important interests in those mines, but they are imbued with a full sense of their responsibilities.

Now, commercial men never seek to bring about a political crisis unnecessarily; they invariably endeavour to avoid one. If they resign themselves to such a course, it is only as a last resource.

The truth of these general assertions is verified in the case in point by two documents which have not been fabricated after the events.

They are the reports of the Chamber of Mines, published by Mr. Rouliot, in January 1898, and January 1899.^[18]

2.—*A Local Board.*

The report made by Mr. Rouliot to the Chamber of Mines on January 20th, 1898, refers to the burdens imposed upon the gold industry by the faulty administration of the Transvaal. It shows how the Volksraad contemptuously rejected, in 1897, a petition signed by more than ten thousand inhabitants of all nationalities and all professions. It declares that "the Chamber of Mines has no desire to interfere in the conduct of general affairs in the Transvaal"; it recalls the fact that the Commission of Enquiry nominated after the Crisis of 1896, had recommended the constitution of a "Local Board" which President Krüger had contemptuously rejected; and goes on to say:—

"It is nonsense to affirm that the creation of such a Board would have made a government within a government, and would have threatened the independence of the State. At the time that we made the proposal, we sincerely trusted that what had happened might be buried in oblivion and that we might dwell together in amity. We had hoped that the burghers would have recognised that want of experience, and their education would have made them unfitted for dealing with the most difficult problems that could face a young nation, and that they would have seen the necessity of calling men to their aid who could give them the benefit of their experience, and help them to ensure sound conditions for the State and its industrial development. Unfortunately, we have been deceived in our hopes...."

That is all; save that Mr. Rouliot alludes cursorily to the fact that the government had endeavoured to found a Chamber of Mines in opposition to the old one, but that an amalgamation had taken place; he, consequently, was speaking in the name of the entire industry.

3.—*A Deliberative Council.*

In the course of the year 1898, Mr. Krüger's policy became more and more provocative. The Chamber of Mines confined itself to the request for the appointment of a deliberative council, to be composed of members nominated by the government, the powers of which should be limited to the application of the laws concerning gold-theft, the sale of spirituous liquors, and the "pass-law" concerning native labourers.

At a meeting of the Volksraad, June, 1898, the sub-committee appointed to enquire into this modest request, decided to recommend its rejection. Mr. A.D. Wolmarans said that "the council would be the means of placing over the heads of the agents of the State, a commission whose members were not in possession of the franchise; and that the Volksraad would practically be adopting the proposition of home rule, and autonomy, put forward by Mr. Chamberlain in 1896."

On September 12th, the question was revived. A member of the Volksraad, named Lombaard, said that: "Johannesburg would never be satisfied until it had a little government of its own"; and that, as for the sale of liquor, as far as he was concerned, he saw no reason why Kaffirs should not drink themselves to death, if such was their taste.

The request was rejected by 14 votes to six. Four-and-twenty hours later the government passed a measure for an additional tax upon mining profits; then the Lombaard and Edgar cases occurred. The Chamber of Mines remained calm, notwithstanding.

4.—*Timidity of the Chamber of Mines.*

In his report of January 26th, 1899, Mr. Rouliot seems to have but one aim, and that is to dissociate the Chamber of Mines completely from the agitation excited among the English workmen by the murder of their comrade, Edgar, at the hands of policeman Jones. I quote his words:—

"The Chamber of Mines has never taken part in any political agitation, nor has it encouraged or organised demonstrations of a political nature. We take our stand solely upon an economic basis, endeavouring by constitutional means the alleviation of our burdens, and offering our advice upon questions that affect the State, equally with an industry, our thorough knowledge of which is undeniable. We ask neither for concessions, nor for monopoly. All that we ask is fair treatment for our business and our shareholders. I may here express my disappointment at seeing that all our efforts to bring about good feeling and union between ourselves and the executive, meet with nothing but contempt on the part of the latter."

He then goes on to allude to Hollander officials; and possibly, to certain members of the diplomatic body:—

"Those act in bad faith who unceasingly encourage the executive of this country in their retrograde policy, and constantly tell them that all they do is well done."

He concludes by pointing out the manner in which the Press and political agents of the Government of Pretoria are stirring up ill-feeling against the proprietors and managers of mines. Persons without any defined profession, attracted by the vision of gold, have flocked to Johannesburg; unable to find employment, they have become a discontented proletariat. These are the true adventurers, if the word be taken in its worst sense. Mr. Krüger and his agents choose them as colleagues and pit them against the "wealthy metal-hearted mine owners." This is the policy pursued by Dr. Leyds in Europe, where he has been clever enough to excite alike the capitalist and socialist Press against the hated mine owner.

Mr. Rouliot continues, that it is not within the province of the Chamber of Mines to provide work for incompetent workmen. It was, no doubt, from among these men that Mr. Krüger had raised the signatures of the counter-petition which so "emphatically" declared the administration of the South African Republic "to be all that could be desired."

5.—*The Petition and the Despatch of May 10th.*

They were *bonâ fide* workmen who took the initiative in the petition of March 28th, 1899, called forth by the murder of their fellow-workman, Edgar. We see, from Mr. Rouliot's report, that the Chamber of Mines regarding the petition as compromising, disassociated itself from it. Nor was that all. The President of the South African League in the Transvaal, Mr. W. John Wybergh, a consulting engineer by profession, was dismissed by one of the principal companies.

These undeniable facts prove that "capitalist intrigues," as Dr. Kuyper calls them, were not the causes of the present war.

The British Government could not disregard a petition which 21,684 British subjects addressed to it; even had its responsibility not been pledged by Articles 7 and 14 of the Convention of 1884, relying upon which those British subjects had settled in the Transvaal. Every civilised Government concerns itself with injuries done to its citizens in foreign lands. The petition of March 28th, was acknowledged by Mr. Chamberlain in a despatch to Sir A. Milner of May 10th, 1899, in which he says that "the complaints of the Uitlanders rested on a solid basis." From the moment that

the British Government "put its hand to the plough," and that Lord Salisbury declared it would not draw back, the end was easy to foresee. Mr. Krüger had recourse to his habitual expedients. I said at the time what must certainly be the result; and an eminent French statesman may remember a conversation I then had with him, in the course of which he declared that the English would never, never, make up their minds to go to war. That was the dangerous idea then spread throughout European diplomacy, and which must have been transmitted to Krüger by Dr. Leyds, and some of the representatives of European Governments then in Pretoria. Thus Krüger thought he need not trouble. Hence his attitude at Bloemfontein. It was not because England was desirous of war that it broke out, it was because she bore the reputation of being too pacific, and because she had given too many proofs of forbearance to the Boers.

CHAPTER XIII.

THE FRANCHISE. [\[19\]](#)

1.—*Impossible Comparisons.*

Dr. Kuyper favors us with a long dissertation upon the various laws of naturalisation existing throughout the world. But he cannot compare a country such as Belgium with 226 inhabitants per square kilomètre, or as France with 72 per square kilomètre, with a country that has two inhabitants to the square kilomètre. Had he been logical, he would have said that the 9,712,000 square kilomètres of the United States should always have been exclusively peopled by the 600,000 or 700,000 Sioux Iroquois and Apaches who used to dispute them.

Dr. Kuyper will reply that they were Redskins and so do not count. Be it so! Though the theory of inferior races has very grave consequences from the standpoint taken up by him.

But, to be logical, he ought to regret that the Puritans of Massachusetts opened wide the doors of the frontiers of their young Republic to English, Irish, and German immigrants, and, having given them equal rights with themselves, fused and made them into citizens of the United States. My present object however is not to discuss theories, but to state facts.

2.—*Policy of Reaction.*

In the Conference which resulted in the Convention of 1881, Messrs. Krüger and Jorissen stated to the English Commissioners that the Franchise would be extended to whites after one year's residence. (V. chap iv. § 3.) This period had been fixed in 1874. In 1882 it was altered to five years' residence.

However, the Boers felt it expedient to offer a satisfaction of some kind, and, in accordance with their usual methods, conceived in 1890 the device of creating a Second Volksraad, deprived of all executive power, to which naturalised aliens were eligible.

But more especially, after the deep levels began to be worked in 1892, when vast outlays of capital were required, and a long duration to gold mining undertakings was ensured, the Uitlanders began to feel that they must no longer be regarded as suspicious aliens, liable to be expelled from the country at any moment. In 1892, they accordingly formed an Association, *The National Union*, "for the purpose of obtaining by all Constitutional means, equal rights for all the citizens of the Republic and the redress of grievances." Far from desiring to place the Republic under control of the British Government, they affirmed the maintenance of its Independence.

In his manifesto, Mr. Leonard, Chairman of the Union, demands: (1) The establishment of the Republic as a true Republic; (2) A Constitution which should be drawn up by competent men, to be elected by the whole population, and which should be a guarantee against all hasty modifications; (3) An equitable system of franchise, and honest representation; the equality of Dutch and English languages.

The Government of Pretoria had done everything that was possible to provoke and justify these demands.

In 1894, ignoring the three months' delay between the promulgation and enforcing of a law required by the Constitution, it was enacted that children born in the Transvaal of alien parents should not be recognised as citizens, unless their fathers had taken the oath of allegiance.

One Uitlander wrote: "Thirteen years ago I entered my name on the Field Cornet's book, in the belief that I should receive the franchise at expiration of four years. For nine years I have been deprived of my rights; and I may have to wait twenty years in this country without becoming a citizen."

The Boer government, instead of becoming more and more liberal in proportion to the wealth and power with which its alien residents have endowed it, has grown more and more reactionary; and this state of reaction has been marked by a series of broken pledges.

I now proceed to give an account of the varying phases of the Franchise Question, since the beginning of the Conference at Bloemfontein.

3.—*The Bloemfontein Conference.*

The Conference at Bloemfontein opened on the 31st of May and closed on the 5th of June, 1889. Mr. Chamberlain's Despatch, of the 10th of May, to Sir Alfred Milner, suggests that he should adopt "a spirit of conciliation in order to arrive at an acceptable arrangement which might be presented to the Uitlander population, as a reasonable concession to their just demands."

The position assumed by the English Government was a very simple one; it had declined to interfere to a large degree, and it desired to interfere still less, in the disputes between the Uitlanders and Boers. It was of opinion that the only way of putting an end to them was the granting of the franchise, so as to enable them to attend to their own interests. The English Government, far from desiring to increase its intervention in the actions of the Transvaal Government, desired to say to the Uitlanders: "You have your electoral rights; make use of them in your own defence."

As was easy to foresee, President Krüger, in accordance with his custom began on a number of side issues, instead of going straight to the point, thus employing the method, known to most of us who have had dealings with mistrustful and ignorant peasants. He raised among others the following questions: (1) Swaziland, which he wanted to annex; (2) The mobilisation of the army; (3) The payment of the Jameson Raid indemnity (of which we will speak later); (4) The Uitlanders' petition; (5) The Gold law; (6) The Mining law; (7) The Liquor law; (8) The Tariff law; (9) The Independence of the Republic; (10) The Dynamite Monopoly; (11) Arbitration on all disputed points; (12) British intervention in the internal policy of the South African Republic. And then, added Mr. Krüger ingeniously, when all these matters have been disposed of, we can take up the question of Franchise.

At the very first sitting Sir Alfred Milner declined to enter upon those subjects; at the second sitting he proposed the following conditions for the Franchise; (a) A five years' residence; (b) Declaration of intention to settle in the Transvaal; (c) Oath to obey the laws, and to fulfil all the obligations of citizenship, military service included; (d) The Franchise to be accorded

only to men of good repute, holders of a given amount of property or of a given income; (e) a certain number of seats to be reserved in the Volksraad for districts where Uitlanders were in the majority.

After keenly contesting these points, Mr. Krüger gave renewed proof of his 'intellectual superiority' by advancing counter proposals bristling with conditions such as sorcerers exact to enable them to accomplish their miracles. As there is always at least one impossible of realisation, the dupe is always in the wrong; in the same manner, it was Krüger's aim to be able to say to the Uitlanders, who did not obtain the Franchise: "It is your own fault. You have not carried out the conditions!"

Oh! Mr. Krüger showed again at Bloemfontein how very clever he is, and how worthy of Bismarck's admiration—but, Bismarck only entered upon a policy which he could carry through.

According to Krüger's proposal, every new-comer must within a fortnight of arrival have himself inscribed as a candidate for naturalisation and the Franchise; the former would be granted after two years; the latter after five more years; seven years in all. But should the first formality have been neglected within the stated time, the Uitlander was to forfeit for good and all the right of obtaining either the one or the other! The first condition having been fulfilled, the inscribed Uitlander was to prove "his obedience to the laws"; but President Krüger did not signify how he was to give this negative proof.

He had, moreover, to prove that he had "committed no act contrary to the Government, or its independence." But to vote against any candidate of Krüger's is, in the Transvaal, an act contrary to the Government. What Uitlander then could ever have obtained his naturalisation? "Two years of continuous registration,"—but are the registers carefully kept in the Transvaal? These formalities accomplished, and naturalisation obtained, there followed five years of registration, and the obligation of permanent residence. A stay at the Cape, a voyage to Europe, would have sufficed to forfeit the whole benefit of the formalities observed, including inscription during the first fourteen days after arrival. Finally, the retrospective clause demonstrates the cunning nature of the methods employed by Mr. Krüger.

First it deals with a nine years' residence, *plus* two years for naturalisation, *plus* six months' declaration, in all eleven years-and-a-half, at the least.

The wording of the clause is as follows:—

"The Residents in the South African Republic before 1890, who shall become naturalised within six months of the promulgation of the proposed law, after giving six months' notice of their intention to apply for naturalisation, shall obtain the full franchise two years after naturalisation, instead of five years. Those who have not been naturalised within six months will have to fulfil the conditions applying to new comers."

Look at the trickery of this regulation. A man must apply for his naturalisation six months beforehand, and he is bound to be naturalised within six months of the promulgation of the law. If he does not make his application on the very day of the promulgation, he loses all the advantages of his residence in the Transvaal before 1890, and he must wait another seven years. Note, that on the actual day of promulgation the administration of the Transvaal could never, even in good faith, have dealt with the 20,000 or 30,000 declarations that would have been made; and Mr. Krüger calmly proceeds to adjourn to another seven years the Uitlanders who had already put in nine years of residence, total 16 years. Yes, Mr. Krüger is very clever to have invented such a skilful contrivance; to have had the audacity to propound it; and to hold the opinion of Europe in such contempt that he could think it possible to make the majority of people the dupe of such schemes; and he has succeeded!

Sir Alfred Milner replied in the courteous language of diplomacy that after the interchange of these two propositions, Mr. Krüger and himself found themselves on exactly the same ground as before the Conference, and that, therefore, there was no object to be gained by prolonging it.

CHAPTER XIV.

THE FRANCHISE.

AFTER THE CONFERENCE OF BLOEMFONTEIN. [\[20\]](#)

1.—*A Krüger Trick.*

The Anglophobe Pro-Boers of course blame Mr. Chamberlain for the rupture of the Bloemfontein Conference, and extol the forbearance of Mr. Krüger, who carried off his proposal to have it passed by the Volksraad, and "his" burghers.

They do not reflect, that, had he honestly desired to put the matter on the road to settlement, Mr. Krüger should first have come to an understanding upon it. By passing it through the Volksraad as law, he should have cut the cable, were he in reality, anything but an autocrat, and such ratifications anything but mere formalities.

Mr. Krüger had the condescension to say to England, "So you will have none of my proposals which compel those already in the Transvaal to an eleven or twelve years' residence, coupled with impossible formalities, before obtaining the franchise? Very well, I will renew my offer to you in the name of the Volksraad and of "my" burghers, and if you are not satisfied, leave me alone to hoodwink a large proportion of enlightened men on the Continent into believing that I am simply the victim of Mr. Chamberlain's animosity, and England's greed."

2.—*The Bill passed by the Volksraad.*

The bill introduced into the Volksraad on July 13th was passed on July 19th, with only the addition of one amendment to Article 4, by which residents in the Transvaal, prior to the promulgation of the law, were entitled to obtain naturalisation after seven, instead of nine years of residence, on condition

that they had complied with the requisite formalities, and had submitted to the delays before stated. People admired Mr. Krüger's generosity. Nine or ten years, instead of eleven or twelve, for the Uitlanders already settled in the Transvaal! What sacrifices he was making to ensure peace! What magnanimity towards Uitlanders! The first paragraph of Article 4 runs thus:

"Article 4. All persons who shall have settled in the South African Republic prior to the commencement of this Act, and who shall be eligible according to the conditions laid down in Article 1, may obtain letters of naturalisation seven years after arrival in the country."

This article, therefore, only accorded naturalisation to former residents; their seven years in the country counted no more than two.

Suppose them naturalised; in reality, they are deprived of all nationality.

They belong no longer to the land of their birth; if wronged, or maltreated they have no claim upon it for redress.

They are not burghers: they have no political rights; they are, in fact, minors who have lost their guardian.

This condition was to last for seven years in a country where changes are made by the week.

The art of importing confusion into the simplest matters, has been most successfully practised by Mr. Krüger and Dr. Leyds. They have even succeeded in persuading thinking men that the Uitlanders should have accepted with enthusiasm the law of July 19th, and that they should have been deeply grateful to Mr. Krüger who had "reduced from nine to seven years the term first proposed by him at Bloemfontein."

3.—*Pretended Concessions.*

The changes referring to the "redistribution" of seats in the Volksraad were numerous. Mr. Krüger posed as making a huge concession to mining districts in raising the number of seats to twelve; but six of these were for the second Volksraad. Now the second Volksraad must always have the

same number of members as the First; thus the apparent concession was merely a valueless automatic arrangement, for it is well understood that the second Volksraad is simply a show institution, devised in 1890. The various schemes for redistribution lead one to the conclusion that the number of members in the First Volksraad were to be in inverse ratio to the population.

The Uitlander looked with mistrust upon a law voted one day which could be modified the next by a simple resolution of the Volksraad; he considered it an illusion which might vanish at any moment Mr. Krüger and his friends thought proper.

4.—*The Joint Commission.*

The British Government might have replied that it did not recognise this law, and have confined itself to the proposals put forward by Sir Alfred Milner at the Bloemfontein Conference. It did not take this attitude which, in France, would have been advised by the most half-hearted of our Nationalists, had the French Government been engaged in similar negotiations.

In his despatch of July 27, Mr. Chamberlain appears to think that "the concessions made to the Uitlanders to guarantee them something of the equality promised them in 1881 were made in good faith; but this law of July 19th is full of complicated details; he therefore proposes that it should be examined by a joint commission." In the Colonial Secretary's despatch of August 2nd to Pretoria, he adds: "It is understood that the Commission to examine into the question of the Uitlanders' Electoral rights shall be prepared to discuss every subject that the Government of the South African Republic may desire to bring before it, including arbitration, exclusive always of the intervention of Foreign Powers."

5.—*Bargaining.*

The Government of Pretoria had put the law in force without waiting to consider these remarks.

On August 15th a despatch of Sir Alfred Milner's makes mention of a proposal of the State Attorney to the British Government to waive their invitation to a joint enquiry, in respect of the concession of a retrospective Franchise of seven years being substituted for mere naturalisation, and of an increase in the number of seats. Such a proposition on the part of the Government of Pretoria shows plainly that it wished to evade enquiry into a law so fettered with formalities that its working was chimerical. And when Sir Alfred Milner referred to his proposal at Bloemfontein, the State Attorney decreased to five years the term of retrospective registration, gave eight seats to the Rand, and two to other mining districts.

Upon which Pro-Boers exclaim: The Government of Pretoria has made every possible concession!

6.—*The Conditions, and Withdrawal of Proposals.*

They prove by that exclamation that they had not read Sir Alfred Milner's despatches of the 22nd and 23rd of August.

The Government of Pretoria made these concessions, indeed but on condition: (1) That the British Government shall withdraw its proposal for a joint Commission to enquire into whether the law was workable; (2) That the British Government shall renounce suzerainty; (3) That arbitration—apart from Foreign Powers, with exception of the Orange Free State—shall be granted immediately upon the Franchise Law being settled. On August 28th Mr. Chamberlain replies. Concerning the suzerainty, he refers to his despatch of July 13th; he consents to discuss the Constitution of a Tribunal of Arbitration from which Foreign Powers, and foreign influence, shall be excluded; he concludes by proposing a fresh Conference.

What is the reply of the Boer Government on September 2nd? The withdrawal of its proposals of August 19th and 21st, relative to the five years' Franchise and increase of number of seats in the Volksraad.

Thus, at the end of three months' negotiations, no conclusion had been arrived at.

It is to this despatch of September 2nd, that Mr. Chamberlain's despatch of September 8th, replies; in that despatch he states, that he is still prepared to accept the proposals of August 19th concerning the Franchise, provided that the enquiry by a Commission, joint or unilateral, prove that the law is workable.

The representation of Uitlanders in the Volksraad, is, of course, only possible on condition that they had the right to make use of the English language.

On September 23rd, the Transvaal Government replies that the *taal*, a language not spoken by any but Boers, is to remain the only language used in the Volksraad, and in dilatory phraseology paves the way for the ultimatum of October 9th. Here we have a summary of the negotiations relating to the franchise, from the time of the Bloemfontein Conference.

7.—*The Franchise is Self-Government.*

Confronted with these facts, the Pro-Boer cries: "Ah, but Mr. Krüger was obliged to protect himself. He could not have his burghers swamped by Uitlanders. He was perfectly right."

Good. There is the theory that honest dealing is unnecessary in public negotiations; an apology for that system which is in direct contradiction to the maxim of private law that you cannot give and withhold at one and the same time.

"But why should the English insist upon obtaining the franchise for Uitlanders?"

In order that there should be no more need for the British Government to concern itself in Transvaal affairs, Sir Alfred Milner was right when he said to the State Attorney (despatch of August 15th):

"I am sure that the present proposal is made *bonâ fide* in order to establish the rights of British subjects once for all; and the Government of the South African Republic need not entertain any fear that we should wish to intervene in its internal affairs in future."

On August 28th, Mr. Chamberlain speaks the same language; at the same time justly observing, that only a portion of the Englishmen residing in the Transvaal would seek to become naturalised.

In point of fact when in February, 1896, the British Government demanded autonomy for the Rand, and on this proposition being refused, demanded at Bloemfontein the Franchise for Uitlanders, it was neither bent upon a policy of absorption nor of conquest. They desired to place self-government in the hands of the Uitlanders, in order to be able to say to them: "Now manage your own affairs with the Boers, obtain respect for your rights by constitutional measures. We are no further concerned in the matter."

It was not the conquest of the Transvaal that was desired by the British Government, it was the establishment of an autonomous Republic.

The Uitlanders of British, Australian, German and American extraction, inter-mixing with the Boers, would soon have merged their national characteristics, and have become simply citizens of the South African Republic.

The Boers might have constructed a vast, wealthy and powerful State in which for generations to come, they would have held the supremacy. As a conquered people they will be compelled to accept the constitution they might have granted, and granted the more readily as they would have reaped the largest share of the benefits.

CHAPTER XV.

THE SUZERAINTY OF ENGLAND AND THE SOUTH AFRICAN REPUBLIC. [\[21\]](#)

1.—*Who raised the Question of Suzerainty?*

Nine persons out of ten, when speaking of the Transvaal question, say: "Why did Chamberlain, at the last moment, raise the question of suzerainty? When everything had been settled, that question ruined all."

The more thoughtful men base their opinion on an article in *Le Temps* of September 15th, in which occurs this hypothetical paragraph:—

"Moreover it is possible, that, in the dim recesses of his brain, the Colonial Minister treasures, as a supreme hope and shadowy idea, the half-formed design of profiting by the discussion he is raising in order to excite fresh disputes, such as the complex question of suzerainty."

This insidious and disloyal conjecture has been reproduced and utilised; the absolutely unfounded insinuation of *Le Temps*, has been turned into an accusation against Mr. Chamberlain.

Some people who fancy they can gauge the motives of statesmen better than their neighbours, add: "If he raised the question of suzerainty, it was because he wanted to bring about a war." Facts prove, however, that the suzerainty question was not raised by England, but by the Government at Pretoria.

The argument against England's suzerainty over the Transvaal is well known; the preamble to the 1881 Convention, in which the word occurs was not reproduced in the Convention of 1884.

But it is also known, that, in the letter to Lord Derby of November 14th, 1883, the delegates from the Pretoria Government demanded restrictions of "the right of suzerainty reserved to Her Majesty by Articles 2 and 18 of the Convention of 1881," and claimed, that "the relation of dependence *publici juris* in which their country now finds itself placed with regard to the British Crown shall be replaced by that of two contracting parties." In his despatch of November 29th, Lord Derby replied, that their "pretension to enter into treaty as between two contracting powers was neither in form nor substance acceptable by Her Majesty's Government."

The Preamble of the Convention of 1884 speaks of the representations of the delegates of the Pretoria Government, "which Her Majesty has been pleased to take into consideration."

Not daring to efface with a stroke of his pen the suzerainty question, Dr. Kuyper attempts a metaphorical distinction:—

"The suzerainty question solves itself. Suzerainty may be an "organic or mechanical relation"; if mechanical, it is arranged by contract."

When Dr. Kuyper declares England's suzerainty to be of the mechanical order, he admits that the Transvaal did not hold towards England the position of an absolutely independent State.

Having been obliged to recognise the right of *veto*, which Article 4 confers upon England regarding the external relations of the Transvaal, he contradicts himself when he invokes the principle of the equality "of States among themselves."

Taking refuge in a kind of prescription, he says: "Never, before 1898, had England breathed a word regarding suzerainty throughout all her interminable correspondence."

On March 6th, 1897, however, Mr. Chamberlain addressed a despatch to the South African Republic, in which he complains of several failures to observe the Convention of 1884. The following facts are cited by him: (1) Conclusion of a treaty of extradition with Holland, signed at the Hague, November 14th, 1895; of an act with Portugal, signed at Lisbon, November 3rd, 1893; of a convention with Switzerland, signed September 30th, 1896

—none of these treaties had been submitted to the English Government, in violation of Article 4 of the Convention of 1884; (2) Laws concerning the emigration of foreigners, the expulsion of foreigners, the Press, all in contravention of Article 14 of the 1884 Convention.

Mr. Van Boeschoten, Secretary of State to the Transvaal at that time, proposed arbitration, the arbitrator to be chosen by the President of the Swiss Confederation.

Replying on October 16th, 1897, Mr. Chamberlain said that in making this proposal the Pretoria Government "appears to have misunderstood the distinction existing between two independent powers."

There we see a distinct assertion of suzerainty, the question which, according to Dr. Kuyper, was first raised in 1898.

"By the Pretoria Convention of 1881, Her Majesty, as Sovereign of the Transvaal, granted to the inhabitants of this territory complete self-government subject to the suzerainty of Her Majesty; and according to the London Convention of 1884, Her Majesty, while maintaining the preamble to the preceding instrument declared that certain other Articles would be substituted for Articles contained in the Convention of 1881. The Articles of the Convention of 1881 have been accepted by the Volksraad of the Transvaal State and those of the Convention of 1884 by the Volksraad of the South African Republic.

"According to these Conventions Her Majesty's position towards the South African Republic is that of a suzerain, who has granted to the people of this Republic self-government under certain conditions; and it would be incompatible with this situation to submit to arbitration the meaning of the conditions under which she has granted self-government to the Republic."

Mr. Chamberlain concluded by saying that he could not admit the intervention of any Foreign power between the English Government and that of the South African Republic, and that, therefore, he could not submit the violations of the Convention of 1884 to the consideration of such a power.

On April 11th, 1898, the new State Secretary, Mr. Reitz, returned to the question in a long despatch described by Dr. Kuyper as "crushing" (*foudroyante*), and which proves, at least, that the Suzerainty Question had been raised before 1898, since it endeavours to refute Mr. Chamberlain's despatches of March 6th, and October 16th, 1897.

To this Mr. Chamberlain replies, December 15th, 1898:—

"The preamble to the Convention of 1881 remains the basis of the relations between Her Majesty and the inhabitants of the South African Republic. To these inhabitants Her Majesty guarantees internal independence, to Herself she reserves the Suzerainty. The concession of internal independence and the reservation of the Suzerainty have but one common origin—the preamble to the Convention of 1881."

Dr. Reitz succeeded Dr. Leyds as Secretary of State, and on May 9th, 1899, replied to the despatch of the preceding December 15th. In forwarding this despatch Sir Alfred Milner observed that it contained a pretension never before put forward by the Government of Pretoria, the following words being used: "the inherent right of a Sovereign International State."

Mr. Chamberlain replied, July 13th, 1899, summarising the Conventions of 1852, 1881, and 1884; he recalled Lord Derby's declaration in the House of Lords, March 17th, 1884: "Whatever Suzerainty meant in the Convention of Pretoria, the condition of things which it implies still remains. Though the word is not actually used, we have kept the substance."

2.—*The Suzerainty and the Conference of the Hague.*

How was it that the theorists, who take up the utterance of Dr. Reitz, that: "the Transvaal has the inherent rights of a Sovereign International State," did not ask the Queen of the Netherlands that the South African Republic might be represented at the Conference of the Hague? It was a grand opportunity, which they no more dreamt of seizing, than the thought of asking that the Bey of Tunis should take part in it.

These documents referred to by us prove that the Suzerainty Question was not raised at the last moment, as the *Temps* of September 15th, 1899, is affirmed to have stated; that it was not raised only in 1898, as stated by Dr. Kuyper; that at least it was raised on March 6th, 1897; that, since the last mentioned date, it has given rise to an important correspondence; and, finally, that it was the first subject raised by President Krüger at the Bloemfontein Conference.

CHAPTER XVI.

THE ARBITRATION QUESTION.[\[22\]](#)

1.—*How the Transvaal interprets Arbitration.*

According to the idea prevailing throughout Europe, President Krüger had conceded everything from the franchise point of view, when all was ruined by Mr. Chamberlain raising the Suzerainty Question at the last moment. We have seen the value of these two assertions.

Then, certain members of the ultra peace party ask hotly: "Why did he not accept arbitration?" The word in itself appears to them to possess some sovereign virtue. Dr. Kuyper seems to me to be suffering from that terrible intellectual malady psittacism when he exclaims:—

"Arbitration is the *mot d'ordre* of modern civilisation."

and he adds:—

"As if arbitration were not the rule between *masters* and *workmen*."

I have often demonstrated the "illusion of such arbitration" (among others see *Le Siècle*, October 6th, 1899), the negative effects produced in France by the law on optional arbitration, and in England by the Conciliation Act of 1896.

From an international point of view, the judgment passed by the Arbitration Tribunal in the matter of the Delagoa Bay Railway, after a lapse of ten years, is not one to induce governments to have recourse to it.

In the relations between England and the Transvaal, the Arbitration Question is closely connected with the Suzerainty Question. It was raised May 7th, 1897, by the State Secretary, Mr. Van Boeschoten, in reply to the complaints made in Mr. Chamberlain's despatch of March 6th, 1897,

relating to the violation of the 1884 Convention. Mr. Van Boeschoten's proposal was that the President of the Swiss Confederation should be asked to appoint an arbitrator.

On October 16th, 1897, Mr. Chamberlain replied:—

"The Government of the South African Republic proposes that the contested points of the Convention shall be submitted to arbitration, the arbitrator to be appointed by the President of the Swiss Confederation. In making this proposal the Government appears to have misunderstood the difference existing between the Conventions of 1881 and 1884 and an ordinary treaty between two independent powers."

The conventions had been made up; they did not suit the Government of the South African Republic. Could the British Government say: "They do not suit you. Very well, we will ask the head of a foreign State to appoint an arbitrator by whom they will be considered and annulled in the event of his sympathizing with you."

In diplomatic terms Mr. Chamberlain explains that the English Government could not carry its condescension so far as to subject to the judgment of a foreigner the result of its policy and the negotiations of its diplomats. On April 16th, 1898, a claim was made by Dr. Leyds for: "A tribunal under international law for the especial purpose of deciding differences of opinion regarding the mode of Government, and the rights and obligations of the South African Republic towards the British Government." Again Mr. Chamberlain replied, on December 15th, 1898, that the English Government could admit of no intervention of a Foreign power between the Pretoria Government and itself.

During the afternoon of the second day of the Bloemfontein Conference the arbitration question with regard to Swazieland, was raised by Mr. Krüger. He returned to the subject on the third day, as follows:—

"In the event of Swazieland becoming part of my Republic; an agreement being arrived at with reference to the Jameson Raid indemnity; Her Majesty's Government agreeing to interfere no more with my internal government; and arriving at an

acceptable solution of the Franchise Question; the matter of English subjects, who, having no need to become burghers, yet still have reason to complain of illegal actions, might be submitted to arbitration."

Sir Alfred Milner replied that: "the English Government could not allow interference between itself and the South African Republic, of a foreign power or influence; that it might, however, be possible to consider some other way of nominating an impartial tribunal, and examining certain questions; but that he himself was not authorised to do so."

In conclusion President Krüger said:—

"Give me Swazieland, the indemnity for the Jameson Raid, and arbitration, in exchange for the Franchise, otherwise, I should have nothing. These points would make something worth having."

Sir Alfred Milner's reply was that President Krüger had raised the question of arbitration, without mentioning the manner of arbitration; that there were some questions, with regard to which it could not be admitted by the English Government; that there were others on which it might be admitted; that, if proposals were put forward, he would submit them to his Government.

Mr. Krüger's closing words were:—

"I have nothing to add, I shall submit the questions concerning the Franchise to the Volksraad as soon as I receive the reply that the English Government accepts my proposal of arbitration."

On June 9th, the proposals relating to arbitration were formulated by Mr. Reitz, State Secretary to the Pretoria Government. He began by proving that he could put into people's mouths words which had never been uttered by them. He declared that "at the Bloemfontein Conference the High Commissioner was personally favourable to the settlement by arbitration of all the differences between the two Governments." Sir Alfred Milner had been careful not to go so far as this.

After this inaccurate preamble the following proposals were made by Mr. Reitz:—

(1) "In future, all questions arising between the two Governments, and relating to the interpretation of the London Convention to be submitted to a tribunal of arbitration, with the exception of questions of trifling importance."

(2) "The tribunal to be composed of two arbitrators appointed respectively by each government, as for instance the Chief Justices of the South African Republic, Cape Colony or Natal. The power to be given to them of choosing as a third arbitrator, someone who should be a subject of neither of the disputing parties; the decision in all cases to rest with the majority."

(3) "The instrument of submission to be considered in each case by the two governments, in order that both may have the right of reserving and excluding any points appearing to them too important to be submitted to arbitration."

Sir Alfred Milner remarked that this project was "a mere skeleton proposal by which too many things were left undefined." For instance, what did the words "trifling matters" mean? and what was meant by the third article, which gives to both Governments the right of excluding from arbitration points which may appear to them too important to be submitted to it?

Finally, the very composition of the tribunal was in contradiction to the reservations made by the English Government. The third arbitrator would be a foreigner, and with this third arbitrator would rest the decision.

2.—*Mr. Chamberlain's Conditions.*

In his telegram of July 27th, however, Mr. Chamberlain did not reply by an absolute definite refusal. He rejected the composition of the tribunal; but he acknowledged that: "the interpretation of the convention in detail is not exempt from difficulties, putting aside the question of the interpretation of the preamble of the Convention of 1881, which regulates the articles substituted in the Convention of 1884." And then Mr. Chamberlain invited

Sir Alfred Milner to enquire of Mr. Krüger whether he would accept the exclusion of the Foreign element in the settlement of disputes, arising from the interpretation of the Convention of 1884:

"As to how far and by what method, questions could be decided by a judicial authority whose independence, impartiality and capacity should be above suspicion."

Thus the constitution of a tribunal of arbitration was accepted by Mr. Chamberlain, and in his despatch of August 28th he directed Sir Alfred Milner to arrange a fresh conference with Mr. Krüger. On September 2nd the Pretoria Government asks whether the British Government will receive burghers of the Free State as members of the arbitration tribunal? which are the subjects it will be competent to settle? and which will be reserved?

Sir Alfred Milner's views on this subject are stated in a lengthy despatch to the Government, dated September 8th. The points which Sir Alfred Milner considered should be excluded from arbitration as being likely to re-open discussion are the following: (1) The position of the British Indians; (2) the position of other British coloured subjects; (3) the right of all British subjects to be treated as favourably as those of any other country; "a right which has never been formally admitted by the South African Republic."

Here the Arbitration Question may be said to have dropped, Sir A. Milner's telegram of September 8th being followed by the ultimatum of October 9th.

Hence this question was not a new one at the time of the Bloemfontein Conference. It had been raised by the Government of Pretoria as a means by which its "inherent rights as a Sovereign State" should be acknowledged, a pretension which could not be admitted by the British Government.

As we have seen, however, arbitration was not absolutely refused by Mr. Chamberlain; he imposed two conditions; the Conventions of 1881 and 1884 were not to be questioned, foreigners were not to be chosen as arbitrators; the points referred to arbitration should be clearly specified.

There is a vast difference between this attitude and the arrogant tone generally ascribed to Mr. Chamberlain. It is always advisable to refer to the documents on a question before discussing it.

CHAPTER XVII.

THE BOER ULTIMATUM. [\[23\]](#)

1.—*Dr. Kuyper's Logic.*

Referring to the Bloemfontein Conference, Dr. Kuyper says:

"Mr. Chamberlain opened his criminal negotiations ... Unfortunately for him, his opponent, of whom Bismarck said there was not a statesman in Europe who surpassed him for sagacity and sound judgment, did not fall into the trap. He prolonged the negotiations ... but from the moment he held in his hands undeniable proofs of the manner in which Mr. Chamberlain was luring him on and seeking to gain time, he hurled at him the reproach of "coveting Naboth's vineyard," and sent an ultimatum to London." (p. 502).

We are struck in this passage by the admirable logic of Dr. Kuyper. It is Krüger who "prolongs the negotiations," and Chamberlain who "seeks to gain time." To heighten the prestige of Mr. Krüger, Dr. Kuyper invokes the testimony of Bismarck. I certainly think that it was Krüger's ambition to become the Bismarck of South Africa, and President of the "Africa for the Afrikanders, from the Zambesi to Simon's Bay."

I come to the final act:—

On September 2nd, the Government of Pretoria withdrew its proposal to reduce the delay in granting the franchise to five years; the British Government not having accepted the conditions imposed: (1) Refusal of all enquiry into the condition of the Franchise Law by a Joint Commission; (2) Abrogation of Suzerainty in conformity with the note of the Government of Pretoria, of April 16th, 1898; (3) Refusal to submit questions under discussion to Arbitration.

2.—*Despatches of the 8th and 22nd September.*

Mr. Chamberlain replied in his despatch of September 8th. He was unable to accept the terms of the Note of April 16th, 1898, which he had formally refused.

He maintained that the Franchise Law was insufficient to guarantee an immediate and effective representation of the Uitlanders.

He demanded that a joint, or unilateral, Commission should be instituted to examine whether the law on the Franchise were not rendered inoperative by the conditions which would make such representations impossible.

The acceptance of these propositions by the South African Republic would put an end to the tension existing between the two Governments, and, in all probability, would render ulterior intervention on the part of Her Majesty's Government to ensure redress of the Uitlanders' grievances unnecessary, as they themselves would thenceforth be entitled to bring them directly to the cognizance of the Executive and the Raad.

Mr. Chamberlain adds that the British Government is prepared to authorise a fresh Conference between the President of the South African Republic and the High Commissioner in order to settle all details of a Tribunal of Arbitration, and the questions capable of being submitted to it on the basis of the Note of August 30th.

This very moderately worded despatch, embodying equally moderate propositions, ended as follows:

"Should, however—which Her Majesty's Government earnestly trusts may not be the case—the reply of the South African Government be negative, or dilatory, it reserves to itself the right to consider the situation *de novo*, and to formulate its own propositions for a final settlement."

The Government of Pretoria replied on September 16th, by referring to its Note of September 2nd. It devotes an entire paragraph to the statement that the English language will not be admitted in the Volksraad. It refuses to

consider at that juncture the appointment of a fresh Conference; it accepts, however, the proposed Joint Commission.

Mr. Chamberlain replies in his despatch of September 22nd, in which he clearly states the attitude of the British Government. It has no desire to interfere in any way with the independence of the South African Republic. It has not asserted any other rights of interference in the internal affairs of the South African Republic than those derived from the Conventions, or "which belong to every neighbouring Government for the protection of its subjects and of its adjoining possessions. But, by the action of the Government of the South African Republic, who have in their Note of May 9th, asserted the right of the Republic to be a Sovereign International State, it has been compelled to repudiate any such claim." He repeats that the Franchise would enable the Uitlanders to procure just treatment for themselves, and concludes by saying: "the refusal of the South African Republic to entertain the offer thus made coming, as it does, at the end of nearly four months of negotiations, and of five years of agitation, makes it useless to further pursue a discussion on the lines hitherto followed, and Her Majesty's Government are now compelled to consider the situation afresh and to formulate their own proposals for a final settlement."

The Transvaal Government has accused Sir Alfred Milner of not keeping his word. Two despatches, one from Mr. Chamberlain, September 16th, the other from Sir Alfred Milner, September 20th, refute this allegation.

3.—*The Ultimatum.*

These two despatches received no reply. On September 28th, the Volksraad of the Orange Free State proclaimed that it would "faithfully and honorably fulfil its obligations towards the South African Republic, in accordance with the alliance between the two States, whatever might be the consequences." Mr. Steyn, the President, gave an account of the negotiations from his point of view. The Cape presented a petition drawn up by fifty-eight members of the Cape Parliament, five of whom were Ministers and had adopted Mr. Steyn's view; on the other side, fifty-three members of both Chambers passed a resolution approving the policy of the British Government. President Steyn complained of troops being sent to Africa. Later events

have proved whether these complaints were justifiable. On September 29th, the Netherlands Railway stated that communication with Natal was interrupted. The telegraph wires were cut. On October 2nd, President Krüger, in adjourning the Volksraad *sine die*, stated that "War is inevitable," and on October 9th, the Government of the South African Republic handed an Ultimatum to the British Agent at Pretoria.

The Ultimatum demanded Arbitration on all subjects; the withdrawal of British troops; the re-embarkation of British troops landed after June 1st; troops on the high seas not be landed.

"The Transvaal Government requires an immediate and affirmative reply on these four points, before five o'clock, p.m. on Wednesday, October 11th, and it is added that should a satisfactory reply not have reached within that period, it will, to its great regret, be compelled to consider the action of Her Majesty's Government as a formal declaration of War."

Next day Mr. Chamberlain naturally replied that "henceforth all discussion was impossible." Notification was made on the 11th of October. Englishmen and suspected foreigners were expelled; and President Steyn, with the special Boer skill, in misrepresenting facts, announced that "England had committed itself to an open, and unjustifiable attack upon the independence of the South African Republic."

We have seen from which side the attack came.

CHAPTER XVIII.

DR. KUYPER'S FINAL METAPHOR. [\[24\]](#)

1.—*Where are the Peace Lovers?*

I have finished my criticism of Dr. Kuyper's article.

Should he not find it clear, perhaps he will be kind enough to mark the points which he desires to have explained. I will gladly insert his reply, on condition that he allows me to publish it, with his article, in pamphlet form, so that readers may have both sides of the question before them. I do not follow him in detail in his apologetic, religious, metaphysical, and oratorical digressions where common-places stand for facts and arguments.

"Has civilisation the right to propagate itself by means of war?" he cries. As far as I am concerned, I think war a very bad vehicle of civilisation, albeit it has often served the purpose; but as long as it remains the last resource of international relations, it is impossible to suppress it.

I return the question. "Has an inferior civilisation the right to impose itself upon a superior civilisation, and to propagate itself by means of war?"

Pro-Boers delight to exhibit in the shop windows a picture representing three Transvaal soldiers; a youth of sixteen, an old man of sixty-five, and a man in the prime of life. What does it prove? That every Boer is a soldier. They have no other calling; to drive ox-teams; ride; shoot; keep a sharp eye on the Kaffirs in charge of their cattle; use the sjambok freely "in Boer fashion," to make them work; these are their occupations. Their civilisation is one of the most characteristic types of a military civilisation.

It is a curious thing, that so many Europeans among the lovers of peace, should actually be the fiercest enemies of England, a country which represents industrial civilisation in so high a degree, that she stands alone, in all Europe, in refusing to adopt compulsory military service. Such lovers

of peace range themselves on the side of professional fighters against peaceable citizens. They are for the Boer spoliator against the despoiled Uitlanders. They take their stand against the English who in 1881 and 1884 voluntarily restored autonomy to the Transvaal, and in favor of the Boer, who in the Petition of Rights, 1881, took for programme, as in the pamphlet recently published by Dr. Reitz, "Africa for the Afrikanders from the Zambesi to Simon's Bay."

The British Government, far from desiring fresh conquests, is drawn on by its colonists. France colonises by sending an army, to be followed by officials; then the government, the press, and committees of all sorts, beg and pray refractory home lovers to go forth and settle in the conquered territory. Englishmen go out to Australia, Borneo, Johannesburg; and the British Government has to follow them. It is not English trade which follows the flag, it is the flag which follows the trade. The present crisis was not brought about by the zeal of British statesmen, but by their weakness in 1881 and 1884; and by the habit which they have allowed the Government of Pretoria of violating conventions with impunity. To such a degree were these violations carried on with regard to the Uitlanders (chiefly English) who, relying on the guarantee of the Transvaal Government, had settled and invested millions of capital in the country, that, dreading for their lives after the murder of Edgar, they presented the petition of March 28th, 1899, to the British Government. No government in the world, approached in such a manner, could have refused to move; and where European governments have gone wrong is that, instead of supporting the action of Great Britain, they let President Krüger believe that they would intervene against her, to the prejudice even of their own countrymen.

It may be mentioned that British Uitlanders only appealed to their own government, after having, conjointly with Uitlanders of other nationalities, addressed various petitions, since 1894, to the Pretoria Government which petitions were received with contempt, President Krüger replying: "Protest! protest as much as you like! I have arms, and you have none!"

2.—The Moral Worth of the Boers.

Dr. Kuyper affirms that "with regard to moral worth the Boers do not fall short of any European nation." I have not wished to digress from my argument by entering upon known cases of corruption concerning the Volksraad in general, and Mr. Krüger in particular, but we have seen their methods of legislation, of administering justice, and of keeping their pledged word; let that suffice.

Dr. Kuyper collects all the calumnies against British soldiers, but he dare not aver that the Boers have not been guilty of the abuse of the white flag, and of the Red Cross. At the beginning of April, Lieutenant Williams, trusting in the good faith of a party of Boers, who hoisted the white flag, was shot dead by them.

Dr. Kuyper says "all the despatches have been garbled, defeats turned into victories." It is not of Dr. Leyds he is speaking, but of the English. He declares (February 1st) that "the best English regiments are already disintegrated," that "the immensity of the cost will frighten the English shopkeepers," that "the ministerial majority will likely soon be dissipated." In giving these proofs of perspicacity, Dr. Kuyper charitably adds, concerning England, "her reverses may be her salvation." And in order to ensure her this salvation, he looks forward to "those projected alliances, whose tendency it is unquestionably to draw together against that insular power," of which Dr. Kuyper would fain "be the son, were he not a Dutchman," and yet whose destruction he so ardently desires. This far seeing politician forgets that were his wishes realised, Holland would be the first victim.

3.—*A Lioness out of Place.*

Dr. Kuyper delivers a lengthy dissertation upon "the inadequacy of the Christian movement"; and shows himself worthy to be a collaborator of M. Brunetière by excommunicating Schleiermacher, "the typical representative," says the Rev. J.F. Smith, of modern effort to reconcile science, theology and the "world of to-day with Christianity."

He inveighs against individualism, Darwinism, and the law of evolution; he speaks of "the broad paths of human sin," and accuses the English clergy of

"betraying the God of Justice"; he places before them the God of the Boers, declaring that "an invisible Power protects their commandos."

Dr. Kuyper who is much better acquainted with the North Sea herrings than with African lions, concludes his articles with this daring metaphor:—

"So long as the roar of the Transvaal lioness, surrounded by her cubs, shall be heard from the heights of the Drakensberg, so long shall the Boers remain unconquered."

Now, the Boers have surmounted the armorial bearings of the South African Republic with an eagle, bird of prey beloved of conquerers. It is true that in the left quarter of their coat of arms is a small lion lying down with bristling mane. It is probably the lady-friend of this ferocious quadruped which Dr. Kuyper has chosen to symbolise the people of the Transvaal.

I would merely remark to him that the highest summit of the Drakensberg rises to an elevation of something like 10,000 feet. It is situated away from the frontier of the Transvaal, between Natal, Basutoland, and the Orange Free State. I imagine it is there that Dr. Kuyper's Transvaal lioness is to take her stand, in order to carry out Krüger's programme "Africa for the Afrikanders, from the Zambesi to Simon's Bay." But the poor animal would not be long on that height, before she would die of cold and hunger. This concluding imagery well reflects the spirit of Dr. Kuyper's essay; it demonstrates to perfection the rapacious and megalomaniac ideal of the Boers; and in his grandiloquence the author contrives to express exactly the reverse of what he means.

4.—*Moral Unity by Means of Unity of Method.*

Here again Dr. Kuyper puts metaphor in the place of reasoning; a truly Eastern mode of discussion.

Ever since I entered upon public life, I have always endeavoured, in the study of social and political phenomena, to eliminate subjective affirmations, the dogmatic and comminatory *a priori*, the antiquated methods which consist of taking words for things, *nomina* for *numina*, metaphors for realities.

Physical and biological science owe to the objective method the progress that, from the times of Bacon and Galileo, has transformed the face of the world; social science must henceforth replace rhetoric, scholasticism and all balderdash of that kind; affirmations, *a priori*, and excommunications, by the rigorous scrutiny of facts: Unity of Method will lead to Moral Unity.^[25]

APPENDIX A.

I cannot do better than reproduce at the end of this pamphlet the analysis made by me in *Le Siècle*, March 14th, of a remarkable article written by M. Tallichet, Editor of the *Bibliothèque Universelle de Lausanne*.

ENGLAND, HOLLAND AND GERMANY.^[26]

I have good reason for believing that President Krüger was kept by Dr. Leyds under the illusion that he could count on intervention in his favour. However, "Who should intervene?" is the question asked by M. Tallichet in his article, *La Guerre du Transvaal et l'Europe*, published by *La Bibliothèque Universelle de Lausanne*.

"President MacKinley, as was asked of him in a petition organised by the Peace League? He has no such intention. Of the European Powers, three only could have tried to do so: Russia, Germany and France. Russia, however, who might have induced France to act with her, will not trouble herself about it. Nicholas II., her sovereign, has but lately taken part at the Hague in a conference promoted by himself for the purpose of considering the means of insuring peace. Having taken the initiative he may be believed to have been actuated by philanthropic motives. But it also happens that peace is, for Russia, of the greatest importance, grown, as she is, out of all proportion, continuing to extend her tentacles wherever there is a chance of seizing something. To this cause of weakness must be added others: the need of money for her gigantic enterprises; the famine, now become endemic, by which her European provinces are ravaged, depopulated and reduced to the greatest misery. She is profiting now by her experiences after the Crimean War. As long as she remains inactive, the influence she exercises on general politics by her mere extent, and the mysterious power which seems to be the corollary of it, far

exceeds her actual strength. On her descending into the arena, however, this optical illusion is dissipated, as was apparent in the recent Turkish War; her prestige was lessened. No steps will therefore be taken by her to increase England's difficulties by which she gains much without striking a single blow.

"With regard to France, her only interest in the question is her rivalry with England and the possibility, afforded by the latter's difficulties, of re-opening the Egyptian Question. Public opinion was sounded on this subject by a few newspapers, government organs among them, but without obtaining the desired result. Although not daring to counsel a formal alliance with Germany, they would have liked to see her intervene. The present French Government, and especially M. Delcassé may be credited with too much good sense and good feeling to resort to the foolish, pin-pricking policy of M. Hanotaux to which the Fashoda incident is really due. Such blunders are not made a second time."

Only Germany remains to be considered. That there have been intimate relations between the Governments at Pretoria and Berlin, is certain. At one time the Emperor's aspiration was to unite his possessions in East Africa to those in the West, and he counted on the Transvaal to assist him. Mr. Stead's opinion on this subject, at the time of the Jameson Raid, has already been quoted by us (*Le Siècle*, December 28th, 1899). But this policy has since been renounced by him; the German Government took fright at the influence exercised by Dr. Leyds on certain of the Berlin newspapers; guns and Mauser rifles have been furnished by Krupp, but that is a private firm; German officers have entered the Boer army, to what extent have they been disavowed? The Emperor William is certainly interested in the Transvaal War.

"He gets others to experiment on the value of German armaments, rifles, guns, and all the tactical and strategical problems incident to the perfection of modern arms, and which have not yet been solved. Experience, that is to say war, is worth everything in such a matter as this, and the Boers with their German officers are literally working for 'the King of Prussia.'"

That the Emperor should wish the Boers to succeed is logical enough, and to all Frenchmen capable of thought, to Belgians, Swiss and Dutch too we commend the way in which this desire is proved by M. Tallichet:

"Should the Boers be successful, England's power would be lessened. She could no longer maintain the balance of power in Europe, which is a service of inestimable benefit to our continent, especially to the smaller countries, and to none more than to Holland. The conquest of the Netherlands is a great temptation to Germany, who would thereby gain exactly what she wishes: an excellent sea-board; a great number of sailors; colonies, at the very moment when she is aspiring to a first-class fleet. In a recent number of the semi-official *Norddeutsche Zeitung*, an article was published by Dr. Ed. von Hartmann, suggesting that Holland should be persuaded, or if necessary forced by commercial competition to become part of the German Empire, which would thus gain all it could possibly desire. Is it likely that this glorious little country will consent? Its charming young Queen, said to be a great sympathiser with the Boers, will she descend from her present position to take rank with the German Princes under the Emperor whose equal she is to-day? Assuredly not.

"But if, on the other hand, England were to be paralysed, no defence of Holland would be possible; France could not undertake it alone, much as it would be to her interest; and what other Powers would be capable of resisting?

"Of course, it may be urged, the German Emperor would never do such a thing. Perhaps not, he is not immortal however, and there is no knowing what may be done by his successors. Besides, by his friendship with Abdul-Hamid, he has shown himself capable of sacrificing everything to the greatness of his Empire. It would in all probability be unnecessary to resort to force; there are less brutal ways just as efficacious. In the event of Germany possessing undisputed preponderance, with no counter-weight, she will bring an irresistible pressure to bear upon Holland, as did Russia to poor Finland, and induce her to

join the Germanic Confederation. When, therefore, Holland upholds the Transvaal, and seeks to annihilate England, she, like the Boers, though in a different manner, is working for "the King of Prussia".

I earnestly recommend this passage in M. Ed. Tallichet's article to the attention of my fellow-countrymen; the folly which dominates our foreign policy, alarms me as much as that which caused the innocence of Dreyfus to be denied for years, by Ministers, *the état-major*, and many millions of Frenchmen. Justice was sacrificed by them to paltry considerations, and to-day those of us who are infatuated with sympathy for the pillaging policy of the Boers seem to have set up as their ideal the completion of the disaster of 1870!

M. Ed. Tallichet's article should be read and carefully considered by all who take an interest in the future of Europe. The question is presented by him fully and clearly; there is no trace of sympathy for or antipathy to Boers or British; the fate of France, Holland, Belgium, Switzerland, is equally discussed. Their position is linked with England's power; any injury to her power would weaken any of the smaller countries above-mentioned, and be a source of danger to France.

APPENDIX B.

DR. KUYPER'S ADMISSION.

I. Offer to Dr. Kuyper to reproduce his article.—II. Dilatory reply of Dr. Kuyper.—III. Withdrawal of Dr. Kuyper.—IV. M. Brunetière's refusal.—V. The Queen of Holland and Dr. Kuyper's article.

OFFER TO DR. KUYPER.

On March 25th I addressed the following registered letter to Dr. Kuyper:

March 25th, 1900.

SIR,

I have the honour to send you the numbers of *Le Siècle* containing a criticism of your article, "La Crise Sud-Africaine," which appeared in the *Revue des Deux Mondes*.

In order to present the *pros* and *cons* to the reader at one and the same time, I ask you to agree to the following proposition: *I offer to publish in one pamphlet your article and my reply*. I undertake to pay the cost and if there should be any profits to divide them with you.

By accepting this proposal you will show that you are as convinced of the solidity of your arguments as I am of the solidity of mine.

YVES GUYOT.

II. REPLY OF DR. KUYPER.

I received the following letter, March 29th:

AMSTERDAM,
March 28th, 1900.

TO M. YVES GUYOT.

SIR,

Only having received one number of your paper (23,381) I do not know whether your criticism is finished. As soon as I have it all before me—with references to the documents cited, if you please, otherwise it is difficult to follow—I will see whether it calls for a detailed reply on my part, in which case I might, according to American precedent, republish my article, inserting, with your permission, your reply. This was done by the *New York Outlook*, when it published in the same number, "the Case of the Boers," and "the Case of the British."

At the same time the copyright of my article belongs to the Editor of the *Revue des Deux Mondes*, without whose permission I can do nothing. As I shall be in Paris before long I will ask him for it, should your polemic attack seem to me to require a reply.

With regard to your proposal to leave the risks of a fresh publication to you, while sharing the profits, although I appreciate the delicacy of such a suggestion, I could not accept it.

KUYPER.

The following remarks on his letter were published by me in *Le Siècle*, March 30th.

"With regard to the first point, I regret that, at the time of writing, Dr. Kuyper should only have received one number of *Le Siècle*; each of my replies having been sent to him under registered cover on the day of publication. It is unfortunate for me that Dr. Kuyper's Article should have appeared in the *Revue des Deux Mondes*, for that brings me again into contact with M. Brunetière, and it is well-known that M. Brunetière who, last

year for fifteen days burdened *Le Siècle* with his prose, does not wish this discussion to be presented to the reader in its entirety. I am greatly afraid of his desiring the same isolation for Dr. Kuyper's article.

"As far as I am concerned, having began my reply to Dr. Kuyper I shall continue it. If it is not M. Brunetière's wish that our articles should be published together he will thereby acknowledge anew the force of my replies. Were they not documented and convincing, he would not fear their proximity."

III. ANOTHER LETTER.

On April 6th I sent the following letter to Dr. Kuyper (registered).

April 6th, 1900.

SIR,

In a few days I shall have finished my replies to your article; they will then be published in pamphlet form. I have the honour to ask you definitely whether you accept my proposal to precede them with your article in the *Revue des Deux Mondes*.

YVES GUYOT.

In answer to this I received the following letter from Dr. Kuyper written from the Grand Hotel, Paris:

GRAND HOTEL, 12, BOULEVARD DES CAPUCINES,
April 12th, 1900.

SIR,

My last letter informed you to what extent I could meet your wishes.

Now that, without regard to my reply, you simply ask for the authorisation to print my article in a pamphlet which you

propose to publish, I can only refer you to the person who has the power to dispose of the copyright.

KUYPER.

I was under the impression that I had acted in accordance with the reply of Dr. Kuyper, who in his letter, March 28th, wrote: "The copyright of my article belongs to the Editor of the *Revue des Deux Mondes*, without whose permission I can do nothing. As I shall be in Paris before long I will ask him for it should your polemics seem to me to require a reply."

But since Mr. Kuyper withdrew from the correspondence I wrote the following letter to Mr. Brunetière, Editor of the *Revue des Deux Mondes*:

April 13th, 1900.

TO THE EDITOR,

SIR,

In the *Revue des Deux Mondes*, February 1st, an article was published by Dr. Kuyper under the title of "La Crise Sud-Africaine."

I have published a criticism upon it in *Le Siècle*; and in order that both sides of the question may be presented to the reader, I have asked Dr. Kuyper's authorisation to reproduce his article in a pamphlet in which I purpose to collect my own.

On March 28th, Dr. Kuyper wrote me: "The copyright of my article belongs to the editor of the *Revue des Deux Mondes*, without whose permission I can do nothing. As I shall be in Paris before long I will ask him for it, should your polemic attack seem to me to require a reply."

To-day Dr. Kuyper writes to me from the Grand Hotel, Paris: "I can only refer you to the person who has the power to dispose of the copyright." Since I am asked by Dr. Kuyper to make the request which he had undertaken to make himself, I will do so. I have the honour to ask you for the authorisation to publish Dr. Kuyper's article which appeared in the *Revue des Deux Mondes*

under the title of "La Crise Sud-Africaine," and to inform me of your conditions for the reproduction.

YVES GUYOT.

IV. M. BRUNETIÈRE'S REFUSAL.

The next day I received the following from M. Brunetière:

PARIS,
April 14th, 1900.

SIR,

You ask me for the authorisation to publish in a pamphlet Dr. Kuyper's article which appeared in the *Revue des Deux Mondes*, under the title of "La Crise Sud-Africaine." I hasten to refuse you the authorisation.

I am, Sir, etc.,
F. BRUNETIÈRE.

In this reply I trace M. Brunetière's habitual courtesy. If I do not thank him for his refusal, I yet thank him for the promptness with which it was signified by him.

It had been my desire to enable the reading public to judge for themselves the value of the arguments put forward by Dr. Kuyper and myself; but it was evidently M. Brunetière's wish that Dr. Kuyper's article should be known only to the readers of the *Revue des Deux Mondes*, and that they should remain ignorant of my reply. This is in itself a confession; for undoubtedly had Dr. Kuyper been convinced that it was impossible for me to refute his arguments he would have requested M. Brunetière to give me the authorisation to reproduce his article.

V.

On April 26th a telegram from the Havas Agency announced that the Queen of Holland had received the journalists of Amsterdam, of whom Dr. Kuyper

is President.

I therefore wrote the following letter to Mr. W.H. de Beaufort, the Dutch Minister for Foreign Affairs:

PARIS,
April 27th, 1900.

TO H.E. THE MINISTER FOR FOREIGN AFFAIRS.

SIR,

The Havas Agency, in a telegram, April 26, gives the following information:

"Replying to a speech made by Dr. Kuyper, President of the Society of Journalists, the Queen said she had read with interest his article on the South African crisis, published in a Paris review. The Queen expressed the hope that the article would be circulated abroad, adding that she considered it important that it should be widely distributed in America."

That the Queen of a constitutional government, such as that of Holland, should have spoken in this way, proves that the Cabinet is of the same mind. I trust, therefore, that I am not too bold in asking your assistance to carry out Her Majesty's intentions.

I had asked Dr. Kuyper's authorisation to reproduce his article at the beginning of a pamphlet; he referred me to M. Brunetière, who with the courtesy of which he has given me so many proofs, replied: "I hasten to refuse your request."

M. Brunetière's views are evidently opposed to those of the Queen of the Netherlands.

It is true that the article would have been followed by my criticism, but if the arguments therein contained are irrefutable, why fear the proximity of my refutation? I beg you, therefore, to be kind enough to ask M. Brunetière to give me permission to

second the views of Her Majesty the Queen of the Netherlands
by assisting to circulate Dr. Kuyper's article.

YVES GUYOT.

I have published my pamphlet while awaiting M. Brunetière's reply to the Dutch Government which can hardly do otherwise than make the request, agreeing, as it does, with the views of Her Majesty. Should M. Brunetière by any chance cease to fear the proximity to Dr. Kuyper's assertions of the facts and documents published by me, I will issue a new Edition.

APPENDIX C.

THE LAST PRO-BOER MANIFESTATION.

Since the foregoing articles were written Dr. Leyds and Mr. Boer have not been idle. M. Pierre Foncin, a General Inspector of the University, has compiled on behalf of a Society called "Le Sou des Boers," a manifesto ending thus: "Well then, since this lust of gold has resulted in war, let the gold of France be poured out in floods, in aid of the innocent victims!"

In spite of considerable influence brought to bear upon this member of the University, the Committee, after some weeks' work, only managed to scrape together something like four hundred pounds. Since then, no more has been heard of it, and its place has been taken by "The Committee for the Independence of the Boers," with M. Pauliat, a Nationalist Senator, at its head. Its object was, in the first place, to organise a reception for the Boer delegates on their return from America.

It was confidently expected by the promoters of the enterprise that it would afford a good opportunity for a demonstration in opposition to the Government on the fourteenth of July. The delegates were received at the Hôtel-de-Ville by the Nationalist Municipal Council, whose President, M. Grébauval, addressed them in virulent speeches, while the great square in front remained empty. The Irish Banquet which took place this year on the twelfth of July under the Presidency of Mr. Archdeacon, and which had been much talked of in 1899 at the time of the Auteuil manifestation, when President Loubet was hit with a stick by Baron Christiani, passed off amidst complete indifference. No disturbance of any kind occurred on the fourteenth of July.

The Congress of the Interparliamentary Union in favour of Peace and Arbitration was to be held on the 31st of July. It was stated that the Boer delegates were going to present a memorial, whilst M. Pauliat intended to raise the Transvaal question. My answer was that I intended to be there too, and considered it of interest to treat that question. Dr. Leyds knew that the

majority of the English Members of Parliament who belonged to the Congress had declared themselves against the South African war, and he anticipated that owing to their former declarations they would find it difficult not to side with the pro-Boer sympathisers.

It was rather a clever idea. But on the 30th of July there was a meeting of the executive Committee composed of two members of each of the various nationalities, at which the English members declared that, if contrary to its regulations, the Transvaal question was to be discussed they were resolved to withdraw. The Committee decided to admit Mr. Wessels, formerly Speaker of the Orange Free State Parliament, simply as a member of the Congress; to oppose any discussion of the Transvaal question and to rule that the communication made by the Boer delegates was merely to be circulated among the members as individuals.

My pamphlet, *La Politique Boer*, and my answer in *Le Siècle* of the 1st of August, were also distributed. Here are a few extracts:

"The manifesto of Messrs. Fisher, Wessels and Wolmarans, delegates for the South African Republics, has been a disappointment to me. I expected that these gentlemen would produce some arguments; they have contented themselves with giving us a summary of Dr. Reitz's pamphlet—"A Century of Wrongs." It ends with the same incitement to annexation, which was already to be found in the cry for help sent on the 17th of February, 1881, by the Transvaal to the Orange Free State—"Africa for the Afrikander, from the Zambesi to Simon's Bay!" The delegates recognise that the time for claiming new territories has passed; they describe themselves as a nation of mild and peace-loving men, the victims of perpetual English persecution. I do not wish to discuss their way of dealing with historical facts, about which they are not so candid as was Mr. Krüger in his 1881 manifesto, because what we are now interested in, is not that which happened in times long ago, but what has happened since the annexation of the Transvaal by England, on the 12th of April, 1877. They do not say a word of the state of anarchy then prevailing in the Transvaal, nor of its military reserves, nor of the threatening attitude of Sekukuni and

Cetewayo. Whereas in the manifesto of 1881, with these facts still fresh in the memory of its author, it is said: "At the outset our military operations were not very successful. In the opinion of our opponents we were too weak to resist successfully an attack from the natives," Sir Theophilus Shepstone, unable to restore order, had finally to annex the Transvaal. This he did at the head of twenty-five policemen only. Had the Transvaal been left to itself Sekukuni's and Cetewayo's impis would have overrun the country and turned out the Boers, who, after they had been delivered from their enemies by the English, proclaimed "a war of independence" in December, 1880. The Majuba disaster, 27th of February, 1881, in which the English had 92 killed, 134 wounded, and 59 prisoners, is of course mentioned by the delegates. An English army twelve thousand strong was advancing; but though the Queen's speech referred to the fact of the annexation, Mr. Gladstone, who in his Midlothian campaign, had protested against it, agreed to the 1881 Convention in which the independence of the Transvaal under England's suzerainty was recognised.

"The Boer nation," the Boer delegates say in their Memorandum, "could not bring themselves to accept the Convention; from all parts of the country protests arose against the Suzerainty clause." I admit willingly that the Boers did not abide by the Convention. In 1884, speaking in the House of Lords,—Lord Derby said: "The attitude of the Boers might constitute a *casus belli* but as the Government were not in the mood for war, and the position of the English resident in Pretoria was anomalous," he assented to the Convention of 27th February, 1884, "by which," say the Boer delegates, "the suzerainty over the Transvaal was abolished, and the South African Republic's complete independence acknowledged." This is their contention, now for the facts."

I then adverted to the events of which the XVth. and XVIth. chapters of *La Politique Boer* give a summary. The Jameson raid is, of course, the mainstay of the delegates' argument. After showing what this is really worth, and also discussing the arbitration question, I concluded as follows:

"The Memorandum shirks all the questions; documents are not referred to; there is nothing in it but assertions, which are to be accepted without discussion. It ends by mixing up what relates to the organisation and administration of the two Republics. But the administration of the Orange Free State and the administration of the South African Republic were quite different things. By following Krüger's policy Mr. Steyn has been guilty of a crime as well as a great political blunder. Had he remained neutral the English army would have been compelled to establish the basis of its operations much farther North, and would have been deprived of the use of the railway line to Bloemfontein. Moreover, when peace was restored, he would have remained independent. The Memorandum alludes to the prosperity of the Transvaal, but forgets to mention that the only share taken in it by the Boers has been an ever-increasing appropriation of the wealth created by the Uitlanders' industry, capital and labour.

"The Memorandum mentions also the laws passed annually, but is careful to omit law No. 1 of 1897, by which Mr. Krüger was empowered to exact from the judges a declaration that decisions of the Volksraad would be enforced by them as legal enactments, whether they were in agreement with the constitutions or not, and to dismiss at a moment's notice any one of them whose response might seem to him unsatisfactory.

"We have already spoken of the concluding sentences in the Memorandum. Messrs. A. Fischer, C.H. Wessels, A.D.W. Wolmarans "appeal to the *Conférence de l'Union Interparlementaire* to take in hand their cause." The Executive Committee has, as has already been said, ruled the question out of order. This decision is not to be regretted considering the tendencies of the delegates' Memorandum; it does not help their cause any more than does Dr. Kuyper's article."

M. Pauliat complained bitterly of the decision. A progressive member of the Belgian deputation, Mr. Lorand, tried to revive the question on the 2nd of August by means of the following resolution:

"The tenth Conference of the Interparliamentary Union for International Arbitration now meeting in Paris being cognisant of acknowledging the resolutions of the Conference at the Hague, and being desirous to express its gratitude to all who have contributed towards its results; trusts, that in future the Powers will avail themselves of the means put at their disposal for the amicable settlement of international disputes and regret that "they have not done so" in the actual conflict between England and the South African Republics."

Upon this, M. Beernaert, with all authority conferred upon him by his position as the delegate of the Belgian Government at the Hague Conference, observed that the Transvaal was not in a position to avail itself of the resolution arrived at by the Conference—because that Conference was no longer in existence, and because the Boers had not been a party to it. On his motion the words "could not do so" were inserted instead of the words "had not done so."

Now why were the Boers not represented at the Hague Conference?

The Queen of Holland, in whose name the invitations were issued, had undoubtedly been appealed to by them, to admit the Transvaal to the Congress in conformity with Dr. Reitz's contention that "the Transvaal had inherent rights to be an international state,"—but their request had been refused, as would have been a similar demand coming from Finland or the Bey of Tunis.

The case was on all fours with that of the Vatican. When the Italian Government declared that they would not sit in the Conference if an invitation were sent to the Holy See, the Vatican was omitted.

Such is the simple fact; and it is just this fact which M. Lorand and M. Beernaert brought into relief by the resolution of 2nd August. I am quite sure that that was not their intention; the fact remains, notwithstanding.

APPENDIX D.

SOUTH AFRICAN CRITICS.

The letters written by Messrs. Labouchere, Ellis and Clark, Members of Parliament, found in Pretoria, are not of much importance to my mind. The authors were not branded as traitors by Mr. Chamberlain, he only wanted to place the letters before the public and their electors, who most likely will find these three gentlemen guilty of another offence than that of supporting Mr. Chamberlain's policy with President Krüger while they made him believe that, as they were fighting against that policy in England, there was no necessity for him to heed their advice. Their attitude in Europe was bound to nullify the effect of the warnings they were sending to Africa. It is astounding to see sedate men contradict themselves in that way. I cannot help wondering at Dr. Clark boasting on the 27th of September that owing to his endeavours Mr. Stead's pamphlet was widely circulated, though, according to his words, "Mr. Stead had to the last moment been our enemy." The fact is that Mr. Stead had met Dr. Leyds (he went on meeting him during the war), and had been persuaded to drop Cecil Rhodes and Jameson in spite of his former praise of them. The publicity given to these letters does evidently not give weight to the opinion of the writers or Mr. Stead either; the interest of the Blue Book on "Correspondence relating to the recent Political Situation in South Africa" does not lie that way, but it lies in the opinion and advice of an Afrikander—to be found in Sir H. de Villiers' letters—he being the Speaker of the House in Cape Colony, Chief Justice, and one of the leaders of the Afrikander party. Sir Henry de Villiers has been often taken to task for being a partisan of the Boers, he cannot, therefore, be suspected of biassed ideas in favour of Great Britain. Some extracts of the letters he wrote to President Steyn on the 21st of May to Mr. Fischer and to his brother Mr. Melius de Villiers on the 31st of July, then on the 28th September, twelve days before the ultimatum was sent by Mr. Krüger, show to what extent he appreciated the latter's policy. His opinion carries all the more weight as he was one of the delegates to negotiate the 1881 Convention.

On the 21st of May, he says:

"I am quite certain that if in 1881 it had been known to my fellow Commissioners that the President would adopt his retrogressive policy, neither President Brand nor I would ever have induced them to consent to sign the Convention. They would have advised the Secretary of State to let matters revert to the condition in which they were before peace was concluded; in other words, to recommence the war."

Here are his views on the actual situation:

"On my recent visit to Pretoria I did not visit the President as I considered it hopeless to think of making any impression on him, but I saw Reitz, Smuts and Schalk Burger, who, I thought, would be amenable to argument, but I fear that either my advice had no effect on them, or else their opinion had no weight with the President.

"I urged upon them to advise the President to open the Volksraad with promises of a liberal franchise and drastic reforms.

"It would have been so much better if these had come voluntarily from the Government instead of being gradually forced from them. In the former case they would rally the greater number of the malcontents around them, in the latter case no gratitude will be felt to the Republic for any concessions made by it. Besides, there can be no doubt that as the alien population increases, as it undoubtedly will, their demands will increase with their discontent, and ultimately a great deal more will have to be conceded than will now satisfy them. The franchise proposals made by the President seems to be simply ridiculous.

"I have always been a well-wisher to the Republic, and if I had any influence with the President I would advise him no longer to sit on the boiler to prevent it from bursting. Some safety-valves are required for the activities of the new population. In their irritation they abuse the Government, often unjustly, in the

press, and send petitions to the Queen, but that was only to be expected. Let the Transvaal Legislature give them a liberal franchise and allow them local self-government for their towns and some portion of the discontent will be allayed."

This, I beg to observe, is exactly what I said at the time when people in Europe who called themselves friends of the Boers yet are only Dr. Leyds' friends or rather dupes urged upon Mr. Krüger the expediency of going on with his mistaken and retrograde policy, and continental diplomatists assured him that he might with impunity disregard the claims of the Uitlanders and England's warnings.

Those who have never condescended to read the Blue Book or the short chapter in this pamphlet, in which an analysis of this Blue Book is given are never tired of referring to concessions and franchise schemes proffered by Mr. Krüger.

What does Sir Henry de Villiers say about it!

"The franchise proposal made by the President seems to be simply ridiculous."

To Mr. Krüger he sent the English Enactment of 1870 on Naturalisation, and urged him to have it adopted. Is not this an answer to those who contended that England "would not be satisfied with what she offered the Transvaal?"

At the same time his lack of confidence in the Volksraad's promises is shown here:

"I fear there would always still be a danger of the Volksraad revoking the gift before it has come into operation."

His second letter is dated 31st of July, more than six weeks after the Bloemfontein Conference. He writes to Mr. Fischer who acted as go-between the Cape Afrikanders and President Krüger. Mr. Chamberlain had requested that a mixed Commission be appointed to enquire into the merits of the franchise law, passed in accordance with Mr. Krüger's proposals. Here is Sir Henry de Villiers' judgment upon Mr. Krüger's and Mr. Chamberlain's proceedings.

"I am convinced Mr. Krüger's friends must now regret they did not recommend to President Krüger three months ago, as I strongly urged, to offer voluntarily a liberal franchise bill with such safeguards as would prevent the old burghers from being swamped.

"Mr. Chamberlain's speech was more moderate than I expected it would be, and as he holds out an olive branch in the form of a joint enquiry into the franchise proposals, would it not be well to meet him in this matter? I know that it might be regarded as a *partial* surrender."

The last sentence runs as follows:

"I don't think that President Krüger and his friends realise the gravity of the situation. Even now the State Secretary is doing things which would be almost farcical if the times were not so serious."

According to Sir Henry telegrams were suppressed by Dr. Reitz on the plea that "the Government should not disseminate lies by its own wires."

Mr. de Villiers added:

"The Transvaal will soon not have a single friend left among the cultivated classes."

Events have proved he had a better opinion of them than they deserved. He goes on with the following:

"The time really has come when the friends of the Transvaal must induce President Krüger to become perfectly frank and take the new comers into his confidence."

And ends with saying again:

"As one who signed the Convention in 1881 I can assure you that my fellow Commissioners would not have signed it if they had not been led to believe that President Krüger's policy towards the Uitlanders would have been very different from what it has been."

In a letter written the same day to his brother Melius, one can see in what fool's paradise Dr. Reitz and his colleagues were living:

"When I was in the Transvaal three months ago, I found that Reitz and others had the most extraordinary notions of the powers and duties of a Cape Ministry in case of war. They are Ministers of the Crown, and it will be their duty to afford every possible assistance to the British Government. Under normal conditions a responsible Ministry is perfectly independent in matters of internal concern, but in case of war they are bound to place all the resources of the Colony at the disposal of the British Crown; at least, if they did not do so, they would be liable to dismissal."

Here is his opinion on the proceedings in the House of Commons:

"The debate which took place in the House of Commons since I last wrote to you satisfies me that the British nation is now determined to settle the Transvaal business in a manner satisfactory to themselves.

"I accordingly begged of Krüger's friends to put the matter to him in this way: On the one side there is war with England—on the other side there are concessions which will avoid war or occupation of the country. Now decide at once how far you will ultimately go; adopt the English five years' franchise—offer it voluntarily to the Uitlanders—make them your friends, be a far-sighted statesman, and you will have a majority of the Uitlanders with you when they become Burghers. The answer I got was: 'We have done too much already and cannot do more.'"

One is aware of the fact that Mr. Krüger contended that the *non*-English Uitlanders would side with him. Sir Henry Villiers writes:

"I have never been able to understand why Krüger never attempted to take the Uitlanders into his confidence. He has always kept them at arm's length with the result that he has entirely alienated them. It is said that there are 21,000 Uitlanders in Johannesburg who support him, and yet no meeting has been

held at Johannesburg to compare with the meetings held by his opponents.

"Why should he not appoint as one of his nominees an Uitlander of position, whose integrity and judgment he has confidence in? If none such exists, it would only be a proof of his want of tact and statesmanship in not rallying such people to his side."

Mr. Melius de Villiers who was in Bloemfontein, while paying due attention to his brother's warnings, wanted only to persuade Krüger to yield for the time being. Forwarding his brother's letter he wrote to Mr. Fischer:

"Please impress upon Oom Paul what I think is an important fact, namely, that the present Ministry in England will not always last.

"By giving way now, we do not do so in perpetuity; but I feel assured a Liberal Ministry will be willing to reconsider the relations of the South African Republic to England, and even to revoke the Convention of London."

"Africa for the Afrikaner, from the Zambezi to Simon's Bay" remained the motto, only Mr. de Villiers looked to the future for its realization. Yet Mr. Krüger sticks to his policy of deceit taking back what had been already granted.

Mr. de Villiers is down upon the summary and arrogant way with which reasonable offers have been rejected, and alluded to the despatch of the 21st of August in which proposals made in the despatch of the 19th are declared to be subordinate to the abandonment of suzerainty rights and acceptance of the principle of arbitration for pending questions.

On the 28th of September Mr. de Villiers appeals to Mr. Fischer for the last time:—

"Supposing a war does take place, is there any chance of the Transvaal obtaining better terms when the war is over? The war will not cease until the Transvaal is entirely subjugated. What will the position of the Republics then be?

"The very best friends of the Transvaal feel that the Bill providing for the seven years' franchise is not a fair or workable measure.

"I am assuming, of course, that the proposals are such as can be accepted without dishonour.

"I confess I look with horror on a war to be fought by Afrikaners to bolster up President Krüger's régime. I could understand a war in defence of the South African Republic after it has made reasonable concessions to the demands of the newcomers, and after it has displayed the same desire to secure good government as is seen in the Orange Free State; but of such a desire I have not seen the faintest trace."

He alludes again to the doings of Dr. Reitz and Smuts:—

"I have carefully read the latest correspondence, and I am by no means satisfied that the British Resident was guilty of a breach of faith. The utmost I would say is that there was a misunderstanding. The dispatch of the 21st August seems to me to have been wholly unnecessary, unless something happened between the 19th and 21st which led the Transvaal Government to think they had yielded too much. I have heard it said that between those dates a cablegram from Dr. Leyds gave hopes of European intervention...."

Does this telegram exist? It is indeed likely. At any rate the responsibility of the war rests upon those who—be they diplomatists or journalists—have deluded Dr. Leyds to that extent. And the blood which is now shed is on the head of those who still try and persuade the Boers that Russia, Germany, or France is going to interfere.

In *Le Siècle* of the 3rd September, extracts from the "Blue Book" have been printed. We also find there letters from the 11th of March, 1898, up to the 8th of May, 1899, written by Mr. J.X. Merriman, the Cape Treasurer during the Schreiner Ministry. As he is one of the leaders of the irreconcilable Afrikaner group he cannot be suspected of undue sympathy towards England. In his first letter to Mr. Steyn a year before the Uitlanders had

petitioned for a redress, fourteen months before the Bloemfontein Conference, eighteen months before the declaration of war, the following passage is to be found:—

"Yet one cannot conceal the fact that the greatest danger to the future lies in the attitude of President Krüger and his vain hope of building up a State on a foundation of a narrow unenlightened minority, and his obstinate rejection of all prospect of using the materials which lie ready to his hand to establish a true Republic on a broad liberal basis. The report of recent discussions in the Volksraad on his finances and their mismanagement fill one with apprehension. Such a state of affairs cannot last, it must break down from inherent rottenness, and it will be well if the fall does not sweep away the freedom of all of us.

"I write in no hostility to the Republics: my own feelings are all in the opposite direction; but the foes of that form of government are too often those of their own household. I am quite sure that you have done what you can in modifying the attitude at Pretoria; but I entreat you, for the welfare of South Africa, to persevere, however unsatisfactory it may be to see your advice flouted and your motives so cruelly misrepresented by a section of colonists.

"Humanly speaking, the advice and good will of the Free State is the only thing that stands between the South African Republic and a catastrophe."

Alluding to the Kotzé incident, the upshot of which was that Krüger and the Volksraad claimed the right to overrun judicial decisions, he writes:

"The radical fault is the utter incapacity of the body that affects to issue its mandates to the Courts. In England it is a Parliament, but then it represents the intelligence of the country, and in Switzerland the same; in the Transvaal it is a narrow oligarchy."

In a letter dated 1st January, 1899, President Krüger is depicted as follows:

"I had the opportunity the other day of a long talk, or rather several talks, with Lippert about the Transvaal. He takes a very

sane view of matters there, and is very hopeless. He represents Krüger—as others describe him—as more dogged and bigoted than ever, and surrounded by a crew of self-seekers who prevent him from seeing straight. He has no one to whom he turns for advice, and he is so inflated as to have the crazy belief that he (Krüger) is born to bring about peace between Germany and France!"

Mr. Merriman is confident that the Orange Free State will interfere (Mr. Steyn was alas, so blind as to fall in with Mr. Krüger's temper instead of smoothing it down), and says:

"Is there no opportunity of bringing about a *rapprochement* between us, in which the Free State might play the part of honest broker?"

"Us" here means Cape Colony and Orange Free State.

Having spoken of matters of general interest for South Africa, of uniform custom duties, etc., he ends by saying:

"The deplorable confusion and maladministration of his financial arrangements still continue, and are a standing menace to the peace of South Africa. Yet, judging from the utterances of the leading men from the Rand who come down here, a very moderate reform would satisfy all except those who do not want to be satisfied, and, I believe, there is very little sympathy for the mischievous agitation that, rightly or wrongly, is attributed to the designs of Rhodes and Beit."

On the 26th of May, 1899, on the eve of the Bloemfontein Conference, he writes to Mr. Fischer, prompter and organiser of the Conference, foreseeing the results of the policy advocated by Dr. Leyds:

"... but there is, of course, an even worse prospect, namely, that misrepresentation may goad Great Britain into a position where, *with the concurrence and invitation of the other powers*, she might feel obliged, even at the risk of enormous military outlay, to cut the Gordian knot. You will probably say, as I certainly say, 'where is the *casus belli*,' and refuse to believe it possible to

imagine such a contingency. Unfortunately, you and I, who keep our heads, must not ignore the fact that an immense number of people seem to have lost theirs and are ready, without reflection or examination, to accept the highly-coloured statements of a partisan press."

He mentions the maladministration in the Transvaal several months before he had written to Mr. Smuts, asking for detailed account of the money granted by the Boer Government to Johannesburg but without getting an answer.

"Of course I know from previous correspondence that you and the President are not disposed to minimize the blots on the administration of the South African Republic, the weak points in the Constitution, and the ignorance and laxity that prevails in financial matters. To do so would be to fatally complicate the situation.

"I am sure that you will, and I most strongly urge you to use your utmost influence to bear on President Krüger to concede some colourable measure of reform, not so much in the interests of outsiders as in those of his own State.

"Granted that he does nothing. What is the future? His Boers, the backbone of the country, are perishing off the land; hundreds have become impoverished loafers, landless hangers-on of the town population. In his own interests he should recruit his Republic with new blood—and the sands are running out. I say this irrespective of agitation about Uitlanders. The fabric will go to pieces of its own accord unless something is done."

Such is the opinion of Mr. Merriman, a friend of the Transvaal, yet every day in Europe one is told that its misfortunes are due to the Uitlanders.

Mr. Merriman thought on the contrary that it was necessary to ask them to come forward and help the State out of its ruinous course.

"Surely it would be better to come forward now and earn the gratitude of South Africa by a comprehensive and liberal measure than to have the State torn and distracted by constant

irritation and bad blood. A moderate franchise reform and municipal privileges would go far to satisfy any reasonable people, while a maintenance of the oath ought to be a sufficient safeguard against the swamping of the old population.

"President Krüger should reflect that nine out of ten people that receive the franchise will be supporters of the Republic in which they will have an interest, and that he will, by granting liberal reforms, disarm all opposition provoked.

"Try and persuade President Krüger to confer a benefit on the whole of South Africa by granting a broad measure of reform, and you will have done the best day's work any statesman ever did in South Africa."

Two months after the declaration of war, while the Boers' military operations were somehow successful he wrote to Mr. Piet de Wet also a member of the Cape Parliament—"it is hopeless...."

"If the Republics had not made the fatal mistake of sending the ultimatum when they did, things would have gone differently; but it is of no use going back on what might have been."

His letter had no effect upon Mr. de Wet, who now is under trial for high treason along with three other Members of the House.

There are other letters, among them one written by Mr. Te Water, who left the Schreiner Ministry. In a speech delivered at Graaff-Reinet some time ago he has declared that the Cape Government ought not to have allowed the railway lines to be used by English troops. Yet in a letter to President Steyn on the 8th of May, 1899, he asked him to put pressure upon "our friends in Pretoria" to adopt conciliatory measures. Alluding to the impending Conference he writes:—

"In your position you as go-between can do endless good towards arriving at an understanding at such Conference. I know well that there is a party who will do everything possible to prevent this."

Nevertheless he also is in favour of the policy advocated by Mr. Melius de Villiers:—

"We must now play to win time. Governments are not perpetual. It is honestly now the time to yield a little, however one may later again tighten the rope."

This shows how this former Minister at the Cape meant to abide by Conventions. How Mr. Krüger did abide by the Conventions of 1881 and 1884 is a well-known fact. No wonder if England was suspicious of the "ridiculous proposals," to use Mr. de Villiers' phrase, offered by President Krüger. The letters written by Mr. Te Water and Mr. Melius de Villiers show that there was good reason for suspicion. These letters show also what responsibility has been assumed by the members of the Liberal party who sided so eagerly with Mr. Krüger and by those who, like Mr. Stead, backed at first Mr. Rhodes' policy with all their might (so Mr. Clark wrote to General Joubert, Mr. Krüger, and President Steyn) and were blind enough to imagine that their party was strong enough to elbow out the Government and revert to Mr. Gladstone's policy after Majuba. Had they been more far-sighted they would have recognised that the Transvaal had since 1881 condemned itself, and that no Ministry, be it Liberal or Conservative, could follow again in the steps of Mr. Gladstone.

Since President Krüger has left the Transvaal, and Botha is negotiating for a surrender, the pacification of the Transvaal needs no more war operation, it has become a mere question of police arrangements. Nevertheless Dr. Leyds is still as active as ever. He reminds us of the Spanish Ministers who when they got the news that the Spanish fleet had been annihilated by Dewey, manufactured forthwith a report to the effect that Americans had suffered a defeat at the hands of the Spaniards. *Le Petit Bleu* does the same. The announcement—English troops retreating—appeared in a marginal note the very day that Lydenburg was taken. On Tuesday, 11th September, *L'Eclair* made the following announcement: "London, 10th September, Prince Henry sails back to Germany. From well-informed quarters I learn

that the main object of the German Emperor's brother's visit was to discuss the ways and means of preserving Transvaal independence."

Eight days previous to this Dr. Leyds had tried to make the world believe that he had come to an understanding with the Czar. In both cases the object aimed at was obvious. Yet though the Dreyfus affair has taught me the all-powerful and far-reaching influence of a lie, I confess that Dr. Leyds is a puzzle to me.

But his work is at an end now. He may have succeeded cleverly in deceiving Krüger and Steyn what the European Powers really meant to do, or in giving those same Powers garbled accounts of the state of affairs in the Transvaal, and the true bearings of the Bloemfontein negotiation, yet the fact remains that it is mainly through him that the South African Republics have lost their independence. He could not like Mr. Krüger, excuse himself upon being led astray by blind and ignorant patriotism. He knew well enough how far the very help he depicted as forthcoming could be depended upon, he knew that England was bound to win in the long run, but there was only one thing which he cared for; to make people in Europe believe that he had an important part to play in the political arena. The war came as a welcome diversion to an endurable position. And now that his country's interests have been entirely sacrificed to his own, he may look upon his work with satisfaction.

APPENDIX E.

THE TRANSVAAL AND THE PEACE CONFERENCE HELD IN PARIS FROM SEPTEMBER 30TH TO OCTOBER 5TH, 1900.

SITTING OF OCTOBER 1ST.

In the English section of the Peace Conference the most prominent members of which were Dr. Clarke, Mr. Moscheles and Mr. Alexander, the following resolutions had been unanimously adopted to be proposed at the Peace Conference:

"That according to the report sent by the Berne International Bureau it has come to the knowledge of the International Peace Congress, that:

(a) "The British Government steadily opposed various attempts made with the object to submit the South African difficulties to arbitration.

(b) "Arbitration was eagerly accepted by the South African Republics, who had repeatedly asked for it, therefore, the International Peace Congress feels compelled to arrive at the following conclusions:

1st. "Of the two opponents the one who declined arbitration, *i.e.*, the British Government is responsible for the war in South Africa.

2nd. "As long as arbitration can possibly be resorted to the appeal to arms is tantamount to being guilty of a crime against civilisation and humanity; therefore,

3rd. "The application of brutal force by Great Britain so as to end their quarrel with the South African Republics deserves an

everlasting blame for what must be considered as an outrage against human conscience, and a betrayal of the cause of progress and humanity."

Then a lengthy discussion arose, in the course of which M. Yves Guyot quoted facts in contradiction to the assertions which the proposed resolution contained.

That resolution was passed in principle by the Congress Commission of Actuality, with the proviso that some words should be left out as being too offensive.

For instance the words: *an outrage* or a *reprehensible attempt* against the right of nations should be substituted for *a crime* against civilisation. The former version was adopted and submitted to the Congress by the Commission, whilst soliciting its opinion on the text of the proposition and of its bearings. After the English delegates had exposed their views, M. Yves Guyot rose and said that he considered it his duty, as a member of the Congress Committee of Patronage, not only to find fault with the proposals of the Commission in their details, *but to object also to the spirit as well as to the letter of the resolution.*

"Looking at actual facts", said Mr. Yves Guyot, "it was not true that arbitration had been accepted by the Governments of the South African Republics. The acceptance, if any, had been hedged in by all sorts of restrictions, for instance, in making it conditional that England should drop the suzerainty, a condition which Her British Majesty's Government could not accept. True, arbitration was mentioned. But arbitration of what kind? about what? Could England recognise the right which the Boers had given themselves, to violate over and over again the Conventions of 1881 and 1884?

"Really it was astounding to see such an amount of sympathy wasted on people who had constantly set at naught Art. 14 of the 1884 Convention with respect to the Uitlanders, who had come and brought them civilisation, energy and wealth.

"A retrospect history of the Boers would quickly show that their hatred of the English was in the first place due to the protection which the latter had given to the natives. It is clearly apparent from documents dealing with the Bloemfontein Conference, that when Mr. Krüger brought forward the arbitration question he merely meant to throw dust into the public's eyes. Now he (M. Yves Guyot) considered it to the interest of the Congress to point out that its members, generous-minded as they were, were irresponsible people. What authority did they attribute to resolutions, blame and reproach, addressed to governments who are themselves responsible for the destinies of their countries?

"Their resolution might be couched in words as strong as they liked, but what effective sanction could they give it? Was it not to be feared rather that by its very violence their language might fan the flames, or rake the embers of new conflicts instead of making its peaceful influence felt?"

M. Guyot's speech was listened to with silent and earnest attention, though now and then objections were heard.

Then after Dr. Clark, Mr. Frederic Passy, Mr. Moscheles and Mr. Arnaud had made their observations the final decision was put off till the next day.

On the 2nd of October the Russian delegate, Mr. Nevicow, read the text of the resolution as it had been amended by the commission:

Motion of the Commission.

"The Ninth International Peace Congress after hearing the report on the events of the year sent by the Berne Bureau, though without pretending to assume the right to pass judgment on the policy of a friendly nation unless it should be to affirm publicly the everlasting principles of international justice, declares that:

1st. "The responsibility of the war which is now devastating South Africa lies with the Government which refused several times to countenance arbitration, that is with the British Government.

2nd. "The English Government by ignoring the principles of right and justice, which have been the glory of the great British nation, *i.e.*, by refusing to arbitrate and indulging in threats which were bound fatally to lead to war, whereas the difficulties might have been solved by judicial means, has committed an outrage against the rights of nations, of such a nature as to check the pacific evolutions of humanity.

3rd. "The Congress equally regrets that, the majority of the Governments represented at the Hague Conference, had not taken any steps to assure the respect of resolutions which were to them an undertaking of honour.

4th. "The Congress considers that it is advisable to appeal to public opinion as regards the Transvaal.

5th. "The Congress expresses its profound sympathy and admiration to the English members of the Congress for the manliness of their declarations, and it hopes that under similar circumstances their example will be followed by other nations."

Mr. Jaffe, of London, alluding to public opinion in England, said that arbitration could only be resorted to by sovereign powers, that the Transvaal was not a sovereign power, and also that any judgment arrived at by arbitration on the various points in dispute between England and the Transvaal, would have been difficult to execute. Mr. Jaffe referred to the approval, almost unanimous, with which the war was looked upon in England and her Colonies; it had provoked great enthusiasm, and it would be a mistake to hurt the feelings of a whole nation.

The wording of the resolution as proposed by the Commission was adopted by all the members but one.

Mr. Lafontaine, Belgium, proposed to add another resolution which ran as follows:

"The congress hopes that the crime or to use the corrected phrase, the error of depriving the South African Republics of their existence and independence will not be committed

definitely; it makes an earnest appeal to civilised governments to intervene as mediators in favour of the two Republics."

After various observations had been made by Mr. Giretti (Italy), Hodgson Pratt, Frederic Passy and Moscheles (the English delegates) the proposition was rejected by 170 votes against 60.

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FOOTNOTES:

- [1] Fitzpatrick. "The Transvaal from Within." p. 122.
- [2] *Le Siècle*, March 20th, 1900.
- [3] See *Le Siècle*, February 3rd and March 14th, 1900.
- [4] "A Century of Injustice."
- [5] *Le Siècle*, March 23rd, 1900.
- [6] *Le Siècle*, March 26th, 1900.
- [7] *Le Siècle*, March 27th, 1900.
- [8] Britain and the Boers. "Who is responsible for the War in South Africa?" By Lewis Appleton.
- [9] *Le Siècle* 29th March, 1900.
- [10] *Le Siècle*, March 30th, 1900.
- [11] *Le Siècle*, March 31st, 1900.
- [12] *Le Siècle*, 3rd April, 1900.
- [13] See the *Revue Sud-Africaine* (Paris), February 26th, 1899.
- [14] *Le Siècle*, April 4th, 1900.
- [15] *The Doom of the Boer Oligarchies*. (*North American Review*, March, 1900.)
- [16] *Le Siècle*, April 5th, 1900.
- [17] *Le Siècle*, April 7th, 1900.
- [18] Published in the *Revue Sud-Africaine* (Paris).
- [19] *Le Siècle*, April 9th, 1900.

[20] *Le Siècle*, April 10th, 1900.

[21] *Le Siècle*, April 11th, 1900.

[22] *Le Siècle*, April 26th, 1900.

[23] *Le Siècle*, April 13th, 1900.

[24] *Le Siècle*, April 14th, 1900.

[25] Yves Guyot. *Les Principes de 1789 et le Socialisme*.

[26] *Le Siècle*, March 14th, 1900.

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